

Non-binding indication

Marine Cargo & CEAR Insurance

Polis number VNAB number	BO-000
Policy holder Address	Lighthief Cyprus Ltd.
Principal insured(s)	All Sections Lighthief Cyprus Ltd. and/or finance parties and/or subsidiary companies, as were, are or maybe constituted or acquired and any affiliated or associated or interrelated or controlled companies of the above as they now exist or may hereafter be constituted for which the principal insured had, have or may have the responsibility for purchasing insurance.
Additional insured(s)	Section 1 and partly Section 7 All contractors, project managers and/or engineers and consultants (including finance parties technical adviser) for their respective rights and interests.
Construction(s)	The design, supply, delivery, construction, erection, testing and commissioning of forty seven (47) Battery Energy Storage Systems (BESS'es) as declared to the insurers (and more fully described in the underwriting information provided to the insurers), the sub-station(s), and all ancillary and associated works together with as much of the area proximate to the said place as shall actually be used in connection with the Construction.
Operation(s)	Not applicable.
Site(s)	All sites together with all staging and lay down areas and as much of the area proximate to the said locations as the insured shall actually use in connection with the Construction as more fully described in the underwriting information provided to the insurers.
Reason for issue	Final quotation
Policy Period Construction	Inception date 01-04-2026 (estimated) End date 31-03-2027, both days included Maintenance 12 months after Commercial Operational Date of each installed BESS separately for the "Defects Liability Period".
Operation	not applicable
Insured Interest / Limits of Indemnity	
Section 1 Construction Property Damage	
EUR 92.530.000	Being the contract value of the Construction Project of 47 BESS'es covered under of this Policy (inclusive of freight, customs duties, dues and taxes).
Section 2 Delay in Start-Up <u>excluding</u> Contingent Delay in Start-Up	
EUR 9.253.000	Being the summary of the anticipated Revenues of al 47 BESS'es during an indemnity period of 12 months, and a loss limit for each BESS as stated in the clause "INDEMNITY SECTION 2"
Section 3 Operational Property Damage	
EUR not applicable	One occurrence

Section 4 Operational Business Interruption including Contingent Business Interruption

EUR **not applicable** Annual fixed cost and debt service with an indemnity period of 12 months

Section 5 Marine Cargo

EUR **not applicable** As maximum replacement value per shipment

Section 6 Marine Cargo Consequential loss / Delay in Start-Up

EUR **not applicable**

Section 7 Third Party Liability (Works only)

EUR 5,000,000 Per event and EUR 10,000,000 in the aggregate

Sections 2 and 5 do not include the interest of the additional insured. Interest of the additional insured applies only under Section 7 during the construction period.

Sub limits applying to the Sections 1 and 5

EUR	500,000	Each and every occurrence in respect of the cover provided under the Expediting Expenses Memorandum;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Extra Expenses Memorandum;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Debris Removal and Cost of Clean Up coverages included in Section 1;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Automatic Additions and Deletions coverage included under this policy;
EUR	n/a	Each and every occurrence in respect of the cover provided under the Suppliers Extension to Sections 2 and 4 in respect of the suppliers and/or other locations outside the EER if agreed in advance by insurers;
EUR	n/a	Each and every occurrence in respect of the cover provided under the Customers Extension to Sections 2 and 4 in respect of the customers;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Increased Costs of Constructing Incomplete or Unbuilt Works Memorandum to Section 1;
	n/a	Of the estimated contract sum of the work each and every occurrence as additional coverage, with a maximum of EUR 250,000 in respect of the cover provided under the Tests, Leak and/or Damage Search Costs Memorandum to Section 3;
EUR	250,000	Each and every occurrence in respect of the cover provided under the Stand-By Charges Memorandum;
EUR	100,000	Each and every occurrence in respect of the cover provided under the Professional Accountants Fees and Claims Preparations Costs;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Forwarding Charges Memorandum;
EUR	500,000	Each and every occurrence in respect of the cover provided under the Evacuation Expenses Endorsement;
EUR	n/a	Each and every occurrence in respect of the cover provided for Nat/Cat during the Operational phase;
EUR	n/a	For Contingent Delay in Start-Up and Contingent Business Interruption as insured as Per article 1.3 of Section 2 and article 1 of Section 4 but only for damage to or loss of the first sub-station of the grid operator;
EUR	500,000	For firefighting expenses;
EUR	100,000	For loss of drawings;
EUR	500,000	For construction plant extension under Section 1;
EUR	n/a	As a limit of liability for the extension for minor works any one occurrence as mentioned in Paragraph 4.2 of Section 3;
EUR	n/a	As a maximum increased value to be automatically held covered as mentioned in Paragraph 4.2 of Section 3;

	7 percent	Of any total claim paid under Section 1 as additional coverage as mentioned in Paragraph 2 Insured's overheads in Memoranda Section 1;
EUR	100,000	As a limit of liability for the professional fees as mentioned in Paragraph 3 of Memoranda 1;
	125 percent	Of the estimated final project value as maximum additional coverage as mentioned in Paragraph 12 The final project value of the work in Memoranda Section 1;
	5 percent	Of the insured value of the shipment as maximum additional coverage as mentioned in Paragraph 5.7.2 Debris Removal in Section 5;
	5 percent	Of the insured value of the goods as maximum additional coverage as mentioned in Paragraph 5.8 Extra Expenses in Section 5.
	125 percent	Of the limit of indemnity as maximum coverage as mentioned in Paragraph 5.11 Accumulation in Section 5;
EUR	n/a	As a limit of liability for the professional accountant fees and claims preparation costs as mentioned in Section 6.

The sub-limits above are included within the limits of indemnity applicable to this policy and shall apply in excess of the insured's retained liability set forth herein.

Insured's retained liability

Section 1 Construction Property Damage

EUR	50,000	Any one occurrence, however to be increased to EUR 100,000 from the moment the installation is energized to be tested.
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Section 2 Delay in Start-Up including Contingent Delay in Start-Up

30	Days in the aggregate any one occurrence for each BESS separately.
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Section 3 Operational Property Damage

EUR	not applicable	Any one occurrence
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Section 4 Operational Business Interruption including Contingent Business Interruption

not applicable	Days any one occurrence.
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Section 5 Marine Cargo

EUR	not applicable	Any one occurrence
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Section 6 Marine Cargo Consequential loss / Delay in Start-Up

not applicable	Days
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Section 7 Third Party Liability (Works only)

EUR	25,000	Any one occurrence
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Premium for the policy period

Contract value	EUR 92.530.000
Anticipated revenues	EUR 9.253.000

3,25%	To be calculated over the contract value for Section 1 = EUR 300.722,50
7,50%	To be calculated over the anticipated revenues = EUR 69.397,50
0,25%	To be calculated over the contract value for Section 7 = EUR 23.132,50

EUR	393.252,50	to be paid at inception date, excluding local IPT and levies.
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Territory

European Economic Area

Law and jurisdiction

Cyprus Law

Priorities

Insofar as there are any contradictions in the text of the conditions declared applicable above, the following priority rules apply:

- Clauses take precedence over the general policy conditions and Policy Sheet
- Additional conditions take precedence over the general policy conditions and clauses
- The Policy Sheet take precedence over the general policy conditions

Contradictions in provisions of equal priority will not be interpreted to the detriment of the insured.

Subjectivities

- Final planning
- Names of the Contractor for BESS, electrical BOP and civil BOP
- Detailed lay-out of the BESS showing the exact distances
- Copy of the Service and Maintenance Agreement(s)
- Copies of the UL 9540, UL 9540A , UL 1973 and NFPA 855 certificates
- Copy of the security plans
- Copy of the Due Diligence list during building and name of the company who is doing these inspections.

Insurers

100,00%

Rotterdam, 19 maart 2026

SECTION 1 CONSTRUCTION PROPERTY DAMAGE

1 EXTENT OF COVER

The insurers will indemnify the insured, subject to the term, conditions and exclusions contained in this Section against physical loss of or damage by any cause not hereinafter excluded to the permanent and temporary works, spare materials, formwork, falsework, materials, equipment, machinery, supplies and all other property used for or in connection with the Construction (hereinafter referred to in this section as the "Property Insured") occurring during the policy period and happening within the geographical limits.

2 EXCLUSIONS

The insurers shall not be liable under this Section in respect of:

2.1 Physical loss of or damage to contractor's, sub-contractors and suppliers constructional plant and equipment, scaffolding and temporary buildings, not foreseen to be incorporated in the project.

2.2 LEG3/96 Model "Improvement" Defects Wording

All costs rendered necessary by defects of material, workmanship, design, plan or specification and should damage (which for the purpose of this exclusion shall include any patent detrimental change in the physical condition of the insured property) occur to any portion of the insured property containing any of the said defects, the cost of replacement or rectification which is hereby excluded is that cost incurred to improve the original material, workmanship, design, plan or specification.

For the purpose of this Section and not merely this exclusion it is understood and agreed that any portion of the insured property shall not be regarded as damage solely by virtue of the existence of any defect of material workmanship design plan or specification.

2.3 The cost of making good normal and natural:

2.3.1 wear and tear;

2.3.2 gradual deterioration, rust;

2.3.3 erosion, or gradual corrosion;

2.3.4 condensation.

However, the insurers shall in any event be liable under this Section in respect of the cost of resultant physical loss or damage to the property insured not so affected.

2.4 Loss of the property insured or any part thereof revealed only by the making of a routine inventory or stock-taking unless identifiable with a specific occurrence covered by this Section.

2.5 Loss of or damage to any mechanically propelled vehicle licensed for road use.

2.6 Loss of or damage to any aircraft.

2.7 Loss of or damage to mechanically propelled waterborne vessel or craft exceeding 15 meters in length used other than on inland waterways.

2.8 Loss or damage to cash, bank notes, treasury notes, cheques, postal orders, money orders, stamps or securities.

2.9 Loss of or damage during transport whilst insured under a marine cargo or similar policy.

2.10 Locking pin issues.

MEMORANDA APPLYING TO SECTION 1

1 INLAND TRANSIT

The cover provided by this Section includes physical loss of or damage to property insured procured in the geographical limits whilst in inland transit to, at or from sites. The cover provided under this Memorandum includes physical loss of or damage to such property during loading, unloading and transit by road, rail or inland waterway within the geographical limits or during any trans-shipment, storage or deviations en route within the geographical limits until delivery to the sites or other destination.

2 MAINTENANCE COVER

It is agreed and understood that, otherwise subject to terms, exclusions, provisions and conditions contained in this policy or endorsed thereon, the cover provided by this Section shall be extended for the defects liability period to cover physical loss of or damage to the Construction:

- 2.1 Caused by the insured contractor(s) in the course of the operations carried out for the purpose of complying with the obligations under the defect liability period provisions of the construction contract;
- 2.2 Occurring during the defect liability period provided such physical loss or damage was caused prior to commencement of the defects liability period.

The indemnity provided hereunder shall not extend to indemnify damage arising out of the commercial operation of the Project by the Principal Insured during the Maintenance Period.

If during the Maintenance Period, Property Insured is replaced or repaired under the maintenance or defects liability provisions of any relevant agreement, this Memorandum shall apply for such replaced or repaired property until the expiry of the original Maintenance Period stated in the Risk Details.

3 INSURED SUPPLIED ITEMS

The insurers will indemnify the insured under this Section in addition to the values declared by the principal insured to the insurers) in respect of physical loss or damage to property identifiable with and procured directly for the purpose of the Construction by the principal insured and/or any party on whose behalf they act or may act including any free issued materials.

4 INCREASED COSTS OF CONSTRUCTION INCOMPLETE OR UNBUILT WORKS

The insurers will indemnify the insured under this Section in addition to the values declared by the principal insured to the insurers) in the event of delay in completion of the Construction or any part thereof due solely to:

- 4.1 Physical loss or damage to the property insured for which liability has been admitted under this Section or would have been admitted under this Section but for the application of the insured's retained liability; and/or
- 4.2 Physical loss or damage to constructional plant and equipment, temporary buildings and contents;

Against the additional amount by which the cost of the permanent or temporary works not commenced at the date of the physical loss or damage shall exceed the cost which would have been incurred but for the physical loss or damage.

This Memorandum does not include any amount:

- 4.3 Which would have been incurred irrespective of whether the physical loss or damage had occurred;
- 4.4 Incurred solely to expedite the completion of the Construction or any part thereof at an earlier date than would have been attained had the said physical loss or damage not occurred;
- 4.5 Incurred in redesigning, altering, adding to or improving the permanent and temporary works or rectification of defects or faults or elimination of any deficiencies carried out after the occurrence of the physical loss or damage or any increase in costs as a result of such redesigning, alteration, addition or improvement;
- 4.6 Resulting from any delay due to the inability of the insured to provide sufficient funds for the repair or replacement of the permanent or temporary works suffering physical loss or damage. This provision does not apply where such delay is due to the failure of the insurers to provide any sum or sums due to the insured by reason of their obligations to indemnify the insured promptly under this Section;
- 4.7 In respect of any:
 - 4.7.1 Additional insurance premiums;
 - 4.7.2 Idle time costs incurred in respect of constructional plant and labor;
 - 4.7.3 Arising from or in respect of any other consequential losses not specifically provided for in this Section;
 - 4.7.4 Costs incurred which are indemnifiable elsewhere in this policy.

5 MISLOCATION AND DRILLING

The following are excluded from coverage under this Section:

- 5.1 Failure of the penetration and/or bore to exit at the correct location (therefore outside the permissible tolerance), as well as the incorrect position of the product-carrying pipe and/or drill pipes and/or wash-over pipes etc.;
- 5.2 It proves to be impracticable at the chosen location of the jacking solely as a result of obstacles in the soil and/or soil composition;
- 5.3 The leakage of bentonite or other proppant fluid when used during drilling, such as also the gradual loss of bentonite and/or supporting fluid;
- 5.4 Damage to or loss of drilling equipment, including cost related to the removal of drilling equipment and costs to reconnect with loosened and or broken material.

6 WARRANTY AND EXPRESS WARRANTY

It is a condition precedent upon this insurance that during the construction period no such claim shall be filed under this Section unless and until the insured has made every reasonable effort to collect such loss or damage under any applicable warranty and/or guarantee from third party sub-suppliers. Under third party sub-suppliers is also to be understood all companies belonging to the third party sub-suppliers concern.

In the maintenance period insurers will also benefit from the warranties and/or guarantees provided by all suppliers, including those belonging to the sub-suppliers.

In the event of denial by the supplier and/or manufacturer or failure to collect for such loss after every reasonable effort for collection, a claim for such loss shall be filed with insurers hereon and such loss or damage shall be a claim hereunder if covered by the terms and conditions of this policy.

It is further noted and agreed that where insurers hereon advance the payment in respect of any claim to which a supplier and /or manufacturer has failed to respond, the amount so advanced shall be refunded in full in the event of payment subsequently being made by the supplier and/or manufacturer.

7 EXISTING PROPERTIES

Cover under this Section is extended to include coverage for the repair and/or replacement costs of any physical damage to- or loss of existing properties of the Principal Insured or properties for which he is responsible, which is due to or has been caused by the activities performed by the Construction Project at the Sites insured hereunder.

The Insurers shall not be liable for:

- 1. the cost of rectifying Damage which existed prior to the commencement date of construction works.
- 2. damage caused by fire or explosion

This extension shall not exceed the limit as stated in the Policy Sheet.

SECTION 2 DELAY IN START UP INCLUDING CONTINGENT DELAY IN START UP

1 EXTENT OF COVER

The insurers shall, subject to the terms, conditions and exclusions of this policy, indemnify the principal insured as defined in the Policy Sheet in respect of loss of anticipated revenue (ascertained in the manner hereinafter provided in this Section) incurred by the principal insured during the indemnity period which results from delay, interruption of or interference with the business of the principal insured which results from:

1.1 PHYSICAL LOSS OR DAMAGE

1.1.1 Indemnified under Section 1, or

1.1.2 Which occurs prior to the commencement of commercial operations of the project insured under this policy and which would have been indemnified under Section 1 but for the application of the insured's retained liability applicable to Section 1;

1.1.3 Which occurs prior to the commencement of commercial operations of the project insured under this policy and which would have been indemnified under Section 1 but for the existence of the separate Construction/Erection All Risks insurance of (sub)contractors;

1.1.4 To the cable connection to the first non-owned transformer station, as well as to this transformer station itself, provided that it occurs prior to the commencement of commercial operations of the project insured under this policy and is caused by fire. Lightning, explosion, storm or excavation works.

1.2 Loss of or mechanical breakdown of or damage to any conveyance on which any of the property insured under Section 1 is:

1.2.1 Being carried or is intended to be carried; or

1.2.2 Being installed or erected or is intended to be installed or erected.

2 DURATION

The cover provided by this Section shall operate during the construction period as agreed upon in the construction period as defined in Policy Sheet. The ending of the construction period will be the moment that taking over certificate for the project as a whole as defined in the applicable contract has been issued.

3 MEASURE OF INDEMNITY

The sum payable as indemnity under this Section shall be:

3.1 In respect of loss of anticipated revenue:

The amount corresponding to the combined amount of debt service and fixed cost by which the anticipated revenue that would have been earned by the business of the insured during the indemnity period shall in consequence of the loss, machinery breakdown or damage mentioned in paragraph 1 of Extend of Cover above fall short of the revenue which would have been earned by the business of the insured during such period had such loss, machinery breakdown or damage not occurred less any sum saved during the indemnity period in respect of such charges and expenses of the commercial operations of the business of the insured as may cease or be reduced in consequence of such loss, machinery breakdown or damage

3.2 In respect of increase in cost of working:

Additional expenses necessarily incurred by the principal insured during the indemnity period in achieving capacity levels as required by contract with an electric utility at the time of the loss or in reducing loss otherwise payable under this Section. However, in no event shall the insurers be liable for an amount greater than that for which they would have been liable had the insured been unable to achieve such capacity levels.

Further in determining the indemnity payable under this Section due consideration shall be given to the probable experience after the loss, machinery breakdown or damage mentioned in paragraph 1 of Extend of Cover above based on the current financial model produced by the insured.

4 EXCLUSIONS

The insurers shall not be liable under this Section in respect of any delay, interference or interruption arising directly or indirectly as a consequence of:

4.1 failure by the principal insured to commit funds to the repair or replacement of destroyed or damaged property where such funds have been paid by the insurers and recovered by the principal insured or their designated payee under a full or partial settlement of a claim under Section 1;

4.2 alterations, additions, improvements or elimination of any deficiencies carried out after the occurrence of physical loss or damage except to the extent necessary to reinstate the loss or damage in accordance with the terms and conditions of Section 1;

4.3 All additional delay as a result of sanctions, legislation, permits and embargo etc.

5. OBLIGATIONS

The Principal Insured is obliged to:

1. Notify insurers of any change of the assumed commencement date of the Commercial Operations as defined in the schedule;
2. Inform insurers periodically about the progress of the works with intervals of 3 months;
3. Notify insurers as soon as possible of any insured occurrence that has or could have arisen, which may result in a claim under this Section;
4. Immediately following a(n) (potential) insured occurrence that (may) result(s) in a claim under this Section, make every effort to repair the loss of or physical damage to the project as soon as possible in consultation with insurers and to minimise the delay;
5. Allow insurers and/or the appointed surveyor access to relevant financial records and to provide all information that may reasonably be required to determine the claim.

No rights can be derived from this Section if The Principal Insured failed to comply with one or more of the aforementioned obligations, insofar as the interests of insurers have been prejudiced thereby, unless The principal Insured demonstrates that such non-compliance is the result of circumstances beyond their control and these circumstances are not attributable to them in any way

6. DEFINITIONS

6.1 INDEMNITY PERIOD

The indemnity period begins on the date upon which, but for the happening of the loss, machinery breakdown or damage mentioned in paragraph 1 of Extend of Cover above, the property (or part thereof plus other facilities as applicable) would have been put into use or operation and ending not later than the construction maximum indemnity period thereafter during which period the production reasonably expected to be achieved by the Operation is affected in consequence of such loss, machinery breakdown or damage.

6.2 FRANCHISE

If the repair or replacement of a physical damage or loss under Section 2 hereunder remains below the number of days per occurrence these number of days will not be taken into account for determining the expected delay at the final completion date. However, if the repair or replacement of a physical damage or loss under Section 2 is exceeding the number of days per occurrence, the relevant claim will be monitored and will be fully taken into account for determining the actual delay at the final completion date.

SECTION 3 OPERATIONAL PROPERTY DAMAGE

1 EXTENT OF COVER

If any of the property insured as defined in this Section be physically lost or damaged other than by an excluded peril whilst at the sites stated in the Policy Sheet the insurers will pay to the insured the value of the property at the time of the happening of its physical loss or the amount of such physical damage or, at the principal insured's option, reinstate or replace such property or any part thereof.

2 PERILS EXCLUDED

The insurers shall not be liable under this Section in respect of:

- 2.1 Loss, damage caused by or resulting from infidelity of the principal insured;
- 2.2 Any unexplained loss, mysterious disappearance nor against loss or shortage disclosed on taking inventory has been caused by a peril not specifically excluded under this Section, then this exclusion shall not apply;
- 2.3 LEG3/96 Model "Improvement" defects
All costs rendered necessary by defects of material, workmanship, design, plan or specification, and should damage, which for the purpose of this exclusion shall include any patent detrimental change in the physical condition of the insured property, occur to any portion of the insured property containing any of the said defects, the cost or replacement or rectification which is hereby excluded is that cost incurred to improve the original material, workmanship, design, plan or specification.
For the purpose of this Section and not merely this exclusion it is understood and agreed that any portion of the insured property shall not be regarded as damaged solely by virtue of the existence of any defect of material, workmanship, design, plan or specification.
- 2.4 Physical loss or damage caused by or resulting from normal and natural:
 - 2.4.1 Wear and tear;
 - 2.4.2 Gradual deterioration;
 - 2.4.3 Erosion or gradual corrosion;
 - 2.4.4 Condensation.
Unless such physical loss or damage:
 - 2.4.5 Is caused by other physical loss or damage not otherwise excluded by this Section;
 - 2.4.6 Results in physical loss or damage not otherwise excluded by this Section to property insured, in which case this Section shall insure such resulting physical loss or damage.
- 2.5 Physical loss or damage caused by or resulting from normal settling, normal cracking, normal shrinkage, normal bulging or normal expansion of foundations, walls, floors or ceilings unless such physical loss or damage:
 - 2.5.1 Is caused by other physical loss or damage not otherwise excluded by this Section;
 - 2.5.2 Results in physical loss or damage not otherwise excluded by this Section to property insured, in which case this Section shall insure such resulting physical loss or damage.
- 2.6 Flood
- 2.7 Natural Catastrophes

3 PROPERTY EXCLUDED

This Section does not cover:

- 3.1 Deeds, evidence of debt or title, notes, securities, jewelry, precious stones, furs, fine arts, semi-precious stones, gold, silver, platinum and other precious alloys or metals not for industrial use unless endorsed hereon;
- 3.2 Land (other than improvements thereto), land values, lawns, trees, plants, shrubs, standing timber, growing crops, atmosphere, any water course or body of water whether above or below ground or the restoration or replacement of any of the above. However this exclusion shall not apply in respect of lawns, trees, plants, shrubs and standing timber planted for landscaping purposes;

- 3.3 Cost of grading, excavations and fillings if not related to physical loss of or damage to property insured;
- 3.4 Aircraft and their contents;
- 3.5 Motor vehicles or trailers while being used on public highways;
- 3.4 Hulls or waterborne vessels of every type nature and description over 15 meters in length;
- 3.7 Overhead electrical transmission lines, other than such lines which are the sites;
- 3.8 Dams, bridges, tunnels and pipelines.

MEMORANDA APPLYING TO SECTION 3

1 CONSEQUENTIAL DAMAGE

In the event of physical loss or damage to any property insured on the sites and such physical loss or damage without the intervention of any other independent cause results in a sequence of events which causes physical loss of or damage to other property insured then the cover provided by this Section will include such resulting loss or damage. Nothing in this Memorandum shall be deemed to extend the insurance by this Section to property which is otherwise specifically excluded from coverage by the terms of this Section.

2 MINOR WORKS

It is agreed that this policy shall also indemnify the insured in respect of any residual and/or maintenance work alterations or repairs to the property insured hereunder for any direct physical loss of physical damage in respect of such work.

Cover during the minor works period of this insurance shall be subject to the terms, clauses, conditions, etc of this policy. This extension shall not exceed a limit any one occurrence as mentioned in the Policy Sheet. All works exceeding the mentioned limit need to be agreed in advance by insurers, at an additional premium.

It is further agreed that in the event that such construction and/or such residual and/or maintenance work, alterations or repairs to the property insured hereunder results in an increase in value of such property, this increase in value is to be automatically held covered hereon subject to a maximum as mentioned in the Policy Sheet and an adjustment of the premium at expiry.

3 AUTOMATIC ADDITIONS AND DELETIONS AND ANNUAL DECLARATION

It is understood and agreed that the cover provided by this Section shall automatically extend to include new locations, capital additions or modifications of the Operation or other property newly acquired by the insured as soon as the insured shall have an insurable interest therein. However, the insured agrees to advise the insurers as soon as is reasonably practicable. Any additional or return premium associated with such addition or deletion to be adjusted at the end of each annual policy period.

Subject also to any sub-limit shown in the Policy Sheet

4 TEMPORARY REMOVAL

The cover provided by this Section includes the property insured whilst temporarily removed for cleaning, renovation, repair or any other reasonable purpose, elsewhere on the premises. The amount recoverable under this Memorandum in respect of each item shall not exceed the amount which would have been recoverable had the loss occurred in that part of the sites from which the property insured is temporarily removed. This Memorandum does not apply to property insured if and so far as it is otherwise insured.

5 NON-INVALIDATION

The insurance by this Section will not be invalidated by any act or omission or by any alteration:

- 5.1 Which increases the risk of physical loss or damage unknown to or beyond the control of the principal insured;
- 5.2 In respect of any part of the sites not occupied by the principal insured, whether increasing the risk of physical loss or damage or not.

Provided that the principal insured gives notice thereof to the insurers as soon as practicable and pays an additional premium if required.

6. DEFINITIONS

6.1 PROPERTY INSURED

Wherever the term property insured is used in this Section it shall mean all property of the Operation as more specifically defined in the Policy Sheet owned or used by the principal insured or in its care, custody or control or for which it is responsible including:

- 6.1.1 Property while in course of construction, erection, installation and assembly but only in respect of incidental alterations, additions and betterment;
- 6.1.2 Personal effects of the insured's officials and employees while on the sites;

6.2 OBJECT

Except as otherwise specifically designated herein, wherever the term object is used in this Section it shall mean any machinery, equipment or apparatus which is owned by, leased by or operated under the control of the principal insured including installations and their foundations and including ancillary or related equipment including array cables and export cables, transformers and switch gear, control equipment, substations, storage facilities and underground transmission and distribution lines and other machinery and electronic data processing machinery, all as declared by the insured to the insurers however excluded from coverage are all non-owned parts belonging to the grid.

6.3 FLOOD

Under flood is to be understood a dyke fails or overflows, causing the previously contained water to flood the land behind the dyke.

6.4 NATURAL CATASTROPHES

For the purpose of this policy Natural Catastrophes are defined as follows:

- 6.1 Wind storms (hurricanes, tornados etc.) with a wind speed of 118 km/h or more.
- 6.2 Volcanic eruptions;
- 6.3 Earthquakes;
- 6.4 Tsunamis;
- 6.5 Other catastrophic natural phenomena, such as extreme rain, snow and hail.

SECTION 4 OPERATIONAL BUSINESS INTERRUPTION

1 EXTENT OF COVER

The insurers shall, subject to the terms, conditions and exclusions of this policy, indemnify the principal insured as defined in the Policy Sheet in respect of loss of revenue (ascertained in the manner hereinafter provided in this Section) incurred by the principal insured during the indemnity period which results from interruption of or interference with the business of the principal insured as a result from:

- 1.1 Physical loss or damage by any of the perils insured against under Section 3 caused during the policy period to any property insured under Section 3 or to any other property or part thereof used by the insured at the sites for the purpose of the business of the principal insured;
- 1.2 Physical loss or damage to the cable connection to the first non-owned transformer station, as well as to this transformer station itself, provided that it occurred during period under Section 3 and that it is caused by fire, lightning, explosion, storm or excavation works.

Physical loss or damage caused by any of the perils insured against under Section 3 is hereinafter in this Section of this policy termed "damage".

2 MEASURE OF INDEMNITY

The sum payable as indemnity under this Section shall be:

- 2.1 In respect of loss of revenue:
the amount corresponding to the combined amount of debt service and fixed cost by which the revenue earned by the business of the principal insured during the indemnity period shall in consequence of the Damage fall short of the revenue which would have been earned by the business of the principal insured during such period had such damage not occurred

less any sum saved during the indemnity period in respect of such charges and expenses of the commercial operations of the business of the principal insured as may cease or be reduced in consequence of such damage.

- 2.2 In respect of increase in cost of working:
additional expenses including ordinary payroll over and above normal operating expenses necessarily incurred by the principal insured during the indemnity period in achieving capacity levels as required by contract with an electric utility at the time of the loss or in reducing loss otherwise payable under this Section. However in no event shall the Insurers be liable for an amount greater than that for which they would have been liable had the Insured been unable to achieve such capacity levels.

Further in determining the indemnity payable under this Section due consideration shall be given to the experience of the business of the principal insured before the indemnity period and the probable experience thereafter based on the current financial model produced by the insured.

In adjusting any loss account shall be taken and an equitable allowance made if any shortage in revenue due to the damage is postponed by reason of the revenue being temporarily maintained from other generation sources at the sites or elsewhere.

3 EXCLUSIONS

The insurers shall not be liable under this Section in respect of any interference or interruption arising directly or indirectly as a consequence of:

- 3.1 Failure by the principal insured to commit funds to the repair or replacement of destroyed or damaged property where such funds have been paid by insurers and received by the principal insured or their designated payee to the order of the Insured under a full or partial settlement of a claim under Section 3 or under any other policy of insurance;
- 3.2 Fines or damages for breach of contract for late or non-completion of orders or for any penalties of whatever nature (except any penalties under fuel take or pay provisions) or unless otherwise agreed;

- 3.3 Loss of business due to suspension lapse or cancellation of a lease, license, order, import and customs regulation or restriction unless arising as a result of damage covered under Section 3 or which would have been covered under Section 3 but for the application of the insured's retained liability applicable to Section 3;
- 3.4 Interference at the sites by strikers or other persons with rebuilding, repairing or replacing the property physically lost or damaged or with the resumption or continuation of the business of the insured not involving damage;
- 3.5 Loss of revenue caused by voluntary shutdown of the project operations including, but not limited to, idle periods in which the business of the insured could have been conducted and maintenance operations, unless loss or expense ensues following an insured occurrence.

4 DEFINITIONS

- 4.1 Indemnity period
The indemnity period begins on the date upon which the damage occurs and ends not later than the operational maximum indemnity period thereafter during which period the results of the business of the insured are affected in consequence of the damage.

MEMORANDA APPLYING TO SECTIONS 1 AND 3

The following Memoranda apply to the cover provided under Sections 1 and 3:

1 BASIS OF INDEMNITY

In the event of property insured being physically lost or damaged the basis upon which the amount payable under Sections 1 and 3 is to be calculated shall be the cost of functional reinstatement or functional replacement of the property lost or damaged at the time of such reinstatement or replacement. For the purpose of this insurance and subject to the "Limits of Liability and Reinstatement of Limits" Memorandum applicable to Sections 1, 2, 3, 4 and 7, "functional reinstatement or functional replacement" shall mean the following:

- 1.1 In respect of property of others:
The amount for which the insured is legally liable but in no case to exceed the cost of repair or replacement;
- 1.2 In respect of documents including deeds manuscripts business books plans designs computer systems records and data and data processing media film recording and videotape wire or other recording media:
The cost of the materials plus all costs of reproducing such documents and media.
- 1.3 In respect of all other property insured:
The cost of repairing, replacing, or reinstating (whichever is the least expensive) with material of like kind and quality from the original equipment manufacturer (if available), without deduction for depreciation, subject to the following provisions:
 - 1.3.1 The repair, replacement or reinstatement may be carried out upon another site and in any manner suitable to the requirements of the Insured, subject to the liability of the Insurers not being thereby increased, but must be commenced and carried out with reasonable dispatch;

The insurers' liability for loss under Sections 1 and/or 3 including this clause 1.3 shall not exceed the smallest of the following amounts:
 - 1.3.2 The amount insured under this policy applicable to the lost or damaged property;
 - 1.3.3 The cost of repair, replacement or reinstatement of the said property or any part thereof with identical property intended for the same occupancy and use;
 - 1.3.4 The amount actually and necessarily expended in the repair, replacement or reinstatement of the said property or any part thereof.

No deductions shall be made for depreciation in respect of parts replaced but the value of any salvage shall be taken into account.
 - 1.3.5 Insurers agree that losses and/or damages shall be repaired and/or replacements must be realized in such a way that an existing suppliers- and/or contractors guarantees will remain, at unchanged conditions.

2 INTERIM PAYMENTS

In the event of a loss that has been ascertained to be a valid claim payable under Section 1 and/or Section 3, it is agreed that the insurers shall allow interim payment(s) subject to the provisions of this policy. In order to obtain such interim payment(s), the Insured shall submit an acceptable proof of loss to the insurers. It shall be permissible for the insured to make a claim in accordance with the provisions contained in this policy, but the applicable insured's retained liability must be satisfied before any said interim payment is allowed.

3 PUBLIC AUTHORITIES

The cover provided by Sections 1 and Section 3 is extended to include such additional cost of reinstatement of the property insured (including the additional loss sustained in demolishing any undamaged portion of the property and the cost incurred in actually rebuilding such undamaged portion) as may be incurred by reason of the necessity to comply with building or other regulations of any Government, State, Municipal, Local or other authority (including the European Union where the property insured is situated in a country which is a member of the European Union) provided that such regulations:

- 3.1 where applicable, require the demolition of parts of undamaged property;

3.2 regulate the construction or repair of damaged real property; and

3.3 are in force at the time of the physical loss or damage.

The amount recoverable under this Memorandum shall not include:

3.4 the cost incurred in complying with any of the aforesaid regulations:

3.4.1 in respect of physical loss or damage not insured by Section 1 or Section 3;

3.4.2 under which notice has been served on the Insured prior to the physical loss or damage and for which the Insured would have otherwise been obligated to comply in the absence of any physical loss or damage;

3.5 the amount of any rate, tax, duty, development or other charge or assessment arising out of capital appreciation which may be payable in respect of the property insured by reason of compliance with any of the aforesaid regulations.

The work of reinstatement must be commenced and carried out with reasonable dispatch and may be carried out wholly or partially upon another site subject to the liability of the insurers under this Memorandum not being thereby increased.

4 FIRE FIGHTING EXPENSES

The cover provided by Section 1 and Section 3 is extended to include firefighting expenses necessarily and reasonably incurred by the Insured to prevent or minimize the extent of any insured physical loss or damage to the property insured including the cost of materials expended, costs incurred in refilling fire extinguishing appliances and replacing used sprinkler heads, wages of personnel specifically engaged for such tasks and all firefighting costs claimed against the Insured from a public authority or public fire brigade.

5 ESCALATION

If during the policy period the actual reinstatement value of the property insured shall be in excess of the applicable limit of indemnity stated in the Policy Sheet then such limit of indemnity shall be increased by the amount of such excess but only up to 125 % of the limit of indemnity stated in the Policy Sheet.

6 REMOVAL OF DEBRIS

The cover provided by Section 1 and Section 3 is extended to include costs and expenses in addition to the values declared by the insured to the insurers in respect of the property insured incurred to facilitate reconstruction or repair in:

6.1 removing debris and wreckage;

6.2 dismantling and/or demolishing;

6.3 shoring up or propping;

6.4 repairing or clearing drains, sewers, service mains and the like and/or dewatering;

6.5 restoring access to the property insured and/or original working conditions prior to the physical loss or damage;

6.6 disposal of debris;

6.7 providing and maintaining lights, audible warnings, barriers, hoardings and the like in any circumstances arising from any peril insured under this Section;

As a result of insured physical loss of or damage to the property insured, it being understood that the amount payable under this Memorandum shall not exceed the applicable sub-limit(s) shown in the Policy Sheet each and every occurrence.

7 LOSS OF DRAWINGS

The insurers will indemnify the insured under Section 1 and Section 3 (in addition to the values declared by the insured to the insurers) in respect of extra costs incurred by the insured in respect of rewriting or re-drawing the plans, drawings, calculations or other contract documents physically lost or damaged as a result of a peril insured under such Sections wherever or whenever such physical loss or damage occurs.

8 SERIAL EVENTS

Subject to the terms and conditions of the policy, insurers shall indemnify the insured in respect of physical loss or physical damage to insured property resulting from defects of material workmanship, design, plan, or specification of a similar nature, after application of the deductible according to the following scale:

- 100% of the first two loss amounts;
- 75% of the second two loss amounts;
- 50% of the third two loss amounts;
- No liability hereafter for the seventh and subsequent loss amounts.

Any serial losses or damages will be identified in chronological order, with reimbursement for DSU and BI losses being limited to the same extent as the physical damage corresponding to it, as set out in the above scale.

If a serial defect is discovered, and there are indications that a similar defect may develop elsewhere, the insured must check and repair the relevant part(s) as soon as possible at their own expense. If the insured fails to take these preventive measures after the first two instances of the defect have been identified, any subsequent losses will not be covered.

All other policy terms, conditions, limitations and exclusions remain unchanged.

9 TEST, LEAK AND/OR DAMAGE SEARCH COSTS

If it becomes necessary to repeat any test(s) and/or trial(s) or to carry out subsequent test(s) and/or trial(s) as a result of a physical loss or physical damage to the insured property the costs arising from such an occurrence are covered under this policy.

In the event that the insured become aware of a possible damage to or loss in any of the property insured this policy will indemnify the insured, provided that physical damage is actually found to have occurred, including any earthwork on a trench not damaged in itself but becoming necessary in the search for- and repair of physical damages.

Insurers will bear the cost of any such repeated and/or subsequent test(s) and/or trial(s) and search costs subject to a sub-limit any one occurrence as mentioned in the Policy Sheet.

In addition, if the policyholder has reasonable grounds for assuming that damage which results from and is related to the insured work, works associated therewith and/or the implementation of the insured contracts and all what is related thereto, has arisen to the work and/or to existing properties of the principal, the insurers shall reimburse the reasonable costs and expenses of the localization/detection of such damage, if such costs are made in consultation with the insurers and if such a damage is actually localized/detected and the damage is eligible for indemnification under this policy or would be eligible for indemnification if no policy deductible would have applied.

The foregoing with due observance of:

- The maximum indemnification for the aforementioned costs and expenses amounts to a percentage of the estimated contract sum of the work concerned with a maximum any accident or occurrence as mentioned in the Policy Sheet.
- The joint total of such costs and expenses and the damage will be indemnified with deduction of "the insured's retained liability".

10 STAND-BY CHARGES

Subject to a sub-limit one occurrence as mentioned in the Policy Sheet, insurers shall indemnify the insureds for the cost of stand-by time on craft and/or equipment actively engaged in the course of repair following an occurrence covered under this policy, where the insureds are prevented from working in, around or about the damaged property by bad weather, including named hurricanes and ice.

11 FORWARDING CHARGES

In respect of transit(s) insured hereunder, if as a result of an occurrence covered by the terms of this policy, the insured transit is terminated at a port or place other than that to which the property insured is covered under this insurance, insurers will reimburse the insured for any extra charges properly and reasonably incurred in unloading, storing and forwarding the property insured to the destination to which it is insured hereunder.

Insurers will bear the cost of any such extra charges subject to a sub-limit any one occurrence as mentioned in the Policy Sheet.

MEMORANDA APPLYING TO SECTIONS 2 AND 4

The following Memoranda apply to the cover provided under Sections 2 and 4:

1 EXTRA EXPENSES

This policy covers the extra expense incurred by the principal Insured if at any time during the policy period any or all of:

- 1.1 the property insured under Sections 1 and/or Section 3;
- 1.2 any other property or part thereof used by the Insured at the sites for the purposes of the business of the insured;

suffers physical loss or damage by any of the perils insured against under Section 1 or Section 3 (as applicable) of this policy, provided that the cover provided by this Memorandum shall not exceed the applicable sub-limit shown in the Policy Sheet for each and every occurrence.

Extra expense insured under this Memorandum includes:

- 1.3 the reasonable extra expenses incurred temporarily to continue as nearly normal as practicable the construction and Operations;
- 1.4 the reasonable extra costs of temporarily using property or facilities of the Insured or others.

The reasonableness of such extra expenses or extra costs shall be as determined by the principal insured and as agreed by the appointed loss adjuster/surveyor.

Any value remaining in property obtained in connection with Paragraphs 1.3 and 1.4 above, shall be taken into consideration in the determination of the loss indemnified hereunder.

In no event shall extra expense include:

- 1.5 loss or expenses recoverable elsewhere in this policy;
- 1.6 loss or expenses not incurred during the indemnity period;
- 1.7 costs which normally would have been incurred in conducting the business of the insured during the same period had no insured physical loss or damage occurred;
- 1.8 cost of permanent repair or replacement of property that has been physically lost or damaged.

The principal insured agrees to use any suitable property or service owned or controlled by the principal insured or reasonably obtainable from other sources in reducing the extra expense incurred under this Memorandum.

The cover provided by this Memorandum further includes extra expense incurred during the indemnity period in consequence of losses covered under the suppliers, power suppliers and public utilities, prevention of access, interruption of civil or military authority and construction plant extensions set forth below in this Memorandum.

2 LIQUIDATED DAMAGES

If any contract in respect of the Construction contains a liquidated damages clause providing for payment to the principal insured or to others which payments inure to the benefit of the principal Insured for a delay in completion of the Construction caused by physical loss or damage insured against by Section 1 any portion of such liquidated damages inuring to the benefit of the insured shall subsequently reduce the amount of the insurers' liability under Section 2.

If any contract in respect of the Operation contains a liquidated damages clause providing for payment to the principal insured or to others which payments inure to the benefit of the principal insured for lack of performance of the insured property caused by physical loss or damage insured against by Section 3 any

portion of such liquidated damages inuring to the benefit of the Insured shall subsequently reduce the amount of the insurers' liability under Section 4.

3 SUPPLIERS EXTENTION

The insurance by Section 2 and 4 is extended to include loss resulting from delay, interference or interruption to the Construction or Operation, (under Sections 2 or 4 as applicable) arising from physical loss or damage by any of the perils insured against under Section 1 or Section 3 (as applicable) to property insured located at the site or at the premises of any of the principal insured's direct suppliers' or manufacturers', including damage to or loss of the premises of such suppliers or manufacturers or to property insured at any premises not in the occupation of the principal insured where property insured of the principal insured is stored.

Subject also to any sub-limit shown in the Policy Sheet.

4 CUSTOMERS EXTENTION

The insurance by Section 2 and 4 is extended to include loss resulting from delay, interference or interruption to the Construction or Operation, (under Section 2 or Section 4 as applicable) arising from physical loss or damage by any of the perils insured against under Section 1 or Section 3 (as applicable) to property insured located at the site or at the premises of any of the principal insured's direct customers or to the premises of such customers.

Subject also to any sub limit shown in the Policy Sheet.

5 PREVENTION OF ACCESS EXTENTION

The insurance by Sections 2 and 4 is extended to include loss resulting from delay, interference or interruption to the Construction or Operation, (under Sections 2 or 4 as applicable) arising from any of the perils insured against under Section 1 or Section 3 (as applicable), where such peril(s) prevent or hinder access to the sites and/or prevent or hinder the use of the sites irrespective of whether the sites or property of the principal insured has been damaged.

Subject also to any sub limit shown in the Policy Sheet.

6 INTERRUPTION OF CIVIL OR MILITARY AUTHORITY EXTENSION

The insurance by Sections 2 and 4 is extended to include loss resulting from delay, interference or interruption to the Construction or Operation, (under Sections 2 or 4 as applicable) arising from any of the perils insured against under Section 1 or Section 3 (as applicable), where specifically as a result of such peril(s) access to or from the sites is specifically prohibited or hindered by order of civil or military authority.

Subject also to any sub limit shown in the Policy Sheet.

7 CONSTRUCTION PLANT EXTENSION

The insurance by Sections 2 and 4 is extended to include loss resulting from delay, interference or interruption to the Construction or Operation, (under Sections 2 or 4 as applicable) arising from physical loss or damage by any of the perils insured against under Section 1 or Section 3 (as applicable) to any item of construction plant or equipment, excluding vessels.

Subject also to any sub limit shown in the Policy Sheet.

8 INTERIM CLAIM PAYMENT

The indemnity under Sections 2 and/or 4 shall be payable six weeks after final determination of its amount. In the event of a loss which has been ascertained to be a valid claim payable under Sections 2 and/or 4, it is agreed that the Insurers shall allow interim payment(s) subject to the provisions of this policy. In order to obtain such interim payment(s) the principal Insured shall submit an acceptable proof of loss to the insurers. It shall be permissible for the insured to make a claim in accordance with the provisions contained in Sections 2 and/or 4 but the applicable insured's retained liability must be satisfied before any said interim payment is allowed.

The insurers shall not be liable to pay interest on indemnity monies withheld other than interest for default.

9**ESCALATION**

In the event that the actual revenue of the business of the principal insured differs from the amount declared in respect thereof by the principal insured to the insurers (or such other amounts as may be substituted therefor by memorandum signed by or on behalf of the insurers) the said amount declared is automatically increased or decreased accordingly, provided that such differences do not exceed 30% of the said amount declared (or such other amounts as may be substituted therefor by memorandum signed by or on behalf of the insurers).

MEMORANDA APPLYING TO SECTIONS 1, 2, 3 AND 4

The following Memoranda apply to the cover provided under Sections 1, 2, 3 and 4:

1 ABANDONMENT AND ASSIGNMENT

There shall be no abandonment to the insurers of any property nor shall any assignment or transfer of this policy be valid except with the written consent of the Insurers. However, measures taken by the insured or the insurers with the object of saving, protecting or recovery of property insured under this policy shall not be considered as a waiver or acceptance of abandonment or otherwise prejudice the rights of either party.

2 INSURED'S OVERHEADS

This policy covers the principal's insured's overheads incurred which result from any claim covered hereunder subject to a limit of the percentage as mentioned in the Policy Sheet as part of any total claim paid under Section 1.

3 PROFESSIONAL FEES

This insurance shall indemnify the insured to the maximum amount mentioned in the Policy Sheet in respect of:

- 3.1 Professional fees and related costs necessarily incurred in the reinstatement of the property insured under this policy consequent upon its insured physical loss or damage including but not limited to monitoring fees of the finance parties' technical adviser;
- 3.2 Fees of professional services and legal costs for producing such evidence as may be required by the insurers for the purpose of investigating or verifying any claim under this policy;
- 3.3 Professional accountants charges incurred by the insured in producing business accounts and other such information as may be required by the Insurers for the purpose of investigating or verifying any claim under Section 2 and/or Section 4;
- 3.4 the principal insured's own claims handling and -preparation expenses in respect of any claim under this policy.

4 SEEPAGE, POLLUTION AND CONTAMINATION EXCLUSION

Notwithstanding any provision in the policy in which this Memorandum is included this policy does not insure against loss, damage, costs or expenses in connection with any kind or description of seepage and/or pollution and/or contamination direct or indirect arising from any cause whatsoever.

However if the property insured under this policy is the subject of direct physical loss or damage caused by one or more of the perils listed below and described hereinafter in this Memorandum as the listed perils (such physical loss or damage hereinafter in this Memorandum being termed the original damage) and provided that the Insurers have paid or agree to pay for such direct physical loss of or damage to the property insured under this policy then this policy (subject to its terms, conditions and limitations) insures against direct physical loss of or damage to the property insured under this policy caused by resulting seepage and/or pollution and/or contamination which is the immediate and direct result of the original damage.

For the purpose of the above provision the following are deemed to be listed perils:

Fire, explosion, lightning, windstorm, hail, direct impact of vehicle aircraft or vessel, riot or civil commotion, vandalism or malicious mischief and accidental discharge of fire protection equipment.

The insured shall give notice to the Insurers of intent to claim no later than 3 months after the date of the original damage.

5 DEBRIS REMOVAL AND COST OF CLEAN UP EXTENSION

Notwithstanding the provisions of the preceding exclusion in this Memorandum or any provision respecting seepage and/or pollution and/or contamination and debris removal and cost of clean-up in the policy in which this Memorandum is included and in the event of direct physical loss or damage to the property insured under this policy, Sections 1 and 3 (subject otherwise to terms, conditions and limitations including

but not limited to any applicable deductible) also insure within the applicable sub-limit set forth in the Policy Sheet:

- 5.1 Expenses reasonably incurred in removal of debris of the property insured under this policy lost, destroyed or damaged from the sites;
and
- 5.2 Cost of clean-up, at the sites, made necessary as a result of such direct physical loss or damage

Provided that this policy does not insure against the costs of decontamination or removal of water, soil or any other substance on or under such sites.

It is a condition precedent to recovery under this extension that the Insurers shall have paid or agreed to pay for direct loss or damage to the property insured under this policy unless such payment is precluded solely by the operation of the insured's retained liability and that the insured shall give notice to the insurers of intent to claim for cost of removal of debris or cost of clean-up no later than 3 months after the date of such physical loss or damage.

6 AUTHORITIES EXCLUSION

This policy does not cover expenses, fines, penalties or costs incurred or sustained by the insured or imposed on the Insured at the order of any government agency court or other authority in connection with any kind or description of environmental impairment including seepage or pollution or contamination from any cause.

Nothing in this Memorandum shall override any radioactive contamination exclusion clause in the policy in which this Memorandum is included.

7 LIMITS OF INDEMNITY AND REINSTATEMENT OF LIMITS

The liability of the insurers shall not exceed the applicable limit of indemnity stated in the Policy Sheet except as may be provided in this policy. Except as otherwise provided, payments in respect of any individual claim under this policy shall not reduce any limit of indemnity.

8 EXPEDITING EXPENSES

In the event of physical loss or damage to the property insured under this policy or any part thereof the cost of any repair, replacement or rectification admitted under this policy shall include the additional costs of temporary repairs or replacements, overtime, weekend and shift working, bonus payments, plant hire charges, express delivery (including air freight) and the like incurred in expediting such repair, replacement or rectification but excluding any such costs incurred solely to expedite the completion of any construction, erection or installation of property not physically lost or damaged.

Subject also to any sub-limit shown in the Policy Sheet.

9 CARE, CUSTODY OR CONTROL

The cover provided by this policy is extended to include property of others under the care, custody or control of the principal insured including leased equipment and related rental costs for insured physical loss or damage.

10 OTHER INTERESTS

As various parties may have an interest in the property insured under this policy the principal insured undertake to declare the names, nature and extent of any interest of any such parties at the time of any loss. The cover provided by this policy includes such interest of such other parties.

11 NO RECOVERY

It has been agreed that insurers hereunder will not initiate recourse actions towards the additional insureds unless in the case of a will full act.

12 INSURED SUM

The amount insured under Sections 1, 2, 3 and 4 is deemed to be the provisionally insured amount. However, the purpose of the policy is to insure the final project value of the work as from the effective date, up to a maximum of the percentage of the estimated final project value as mentioned in then Policy Sheet.

13 REIMBURSEMENT

Should it appear in case of a loss or damage that a guarantee obligation is disputed by the (sub-) contractor and/or manufacturer and/or supplier or that the sub-contractor and/or manufacturer and/or supplier wholly or partially fails to comply with his obligations towards the insured principal within six months from the date that the fully documented claim file has been lodged with the (sub-) contractor and/or manufacturer and/or supplier, the insurer will indemnify the insured principal for the amount, as an interest free loan, which could have been charged against this insurance if the guarantee obligation mentioned above had not been applicable.

Reimbursement of this compensation only has to take place in so far as recovery from the (sub-) contractor and/or manufacturer and/or supplier in question succeeds. This compensation is granted subject to the explicit reservation that the Insured Principal shall provide full co-operation regarding those steps which the insurers reasonably deem useful and/or necessary to recover the loss or damage under the contractual obligations of the (sub-) contractor and/or manufacturer and/or supplier, including the conducting of possible court proceedings in the name of the policy-holder but for the account of the insurers.

DEFINITIONS APPLYING TO SECTIONS 1, 2, 3 AND 4

The following definitions apply to the Sections 1, 2, 3 and 4, except where shown otherwise:

1 OCCURRENCE

Under occurrence is to be understood any occurrence consequent upon or attributable to one source or original cause.

If an initial occurrence causes other occurrences, all will be considered one occurrence.

All damage which results from the same occurrence will be considered one occurrence for the purposes of applying the insured's retained liability.

For the purpose of the application of the insured's retained liability it is agreed that any physical loss or damage to property, wherever occurring, arising during any one period of seventy-two consecutive hours and caused by earthquake, volcanic action, land movement, storm, tempest, flood or water shall be deemed as a single event and therefore to constitute one occurrence. For the purpose of the foregoing the commencement of any such seventy-two hours period shall be decided at the discretion of the insured, it being understood and agreed however that there shall be no overlapping in any two or more such seventy-two hour periods in the event of physical loss or damage occurring over an extended period of time. The insurers shall not be liable for any physical loss or damage occurring before the effective date and time of this policy nor for any physical loss or damage occurring after the expiration date and time of this policy. However, should any elected period of seventy-two hours as referred to above extend beyond the expiration date of this policy and commence prior to expiration the Insurers will nevertheless pay all losses occurring during such elected period as if such period fell entirely within the term of this policy.

2 COMMERCIAL OPERATIONS

Wherever the term "commercial operations" appears in this policy it shall mean for each operation commencing after testing and acceptance by the principal insured.

3 FLOOD

Under flood is to be understood a dyke fails or overflows, causing the previously contained water to flood the land behind the dyke.

4 NATURAL CATASTROPHES

For the purpose of this policy Natural Catastrophes are defined as follows:

- 4.1 Wind storms (hurricanes, tornados etc.) with a wind speed of 118 km/h or more.
- 4.2 Volcanic eruptions;
- 4.3 Earthquakes;
- 4.4 Tsunamis;
- 4.5 Other catastrophic natural phenomena, such as extreme rain, snow and hail.

SECTION 5 MARINE CARGO

1 INSURING CONDITIONS

The following insuring conditions apply to this Section:

INSTITUTE CARGO CLAUSES 'A' CL.252 dated 1/1/82.
 INSTITUTE WAR CLAUSES (CARGO) CL.255 dated 1/1/82.
 INSTITUTE STRIKES CLAUSES (CARGO) CL.256 dated 1/1/82.
 INSTITUTE CARGO CLAUSES (AIR) CL.259 dated 1/1/82.
 INSTITUTE WAR CLAUSES (AIR CARGO) CL.258 dated 1/1/82.
 INSTITUTE STRIKES CLAUSES (AIR CARGO) CL.260 dated 1/1/82.
 INSTITUTE CLASSIFICATION CLAUSE CL.354 dated 1/8/97

2 EXTENT OF COVER

This Section covers all property of the Construction as more specifically defined in the Policy Sheet owned or used by the Insured or in its care custody or control or for which it is legally liable, such property being transported: For use in or incidental to the fabrication, erection or completion of the Construction, Such property is covered under this Section for voyages to the sites (direct shipment or via ports and/or places in any order) by all means of land, water conveyance (including any conveyances owned, hired, leased or otherwise under the control of or operated by the insured).

3 SECONDARY COVERAGE

Section 5 and 6 is a secondary coverage which is solely in place for the interest of the principal as defined in the Policy Sheet.

No such claim shall be filled under Section 5 unless and until the principal and any co-insureds have made every reasonable effort to collect such loss or damage under the Cargo policy placed via the applicable contractors/suppliers, which will be endorsed before Financial Close.

In the event of denial of liability by the insurers subscribing to contractors/suppliers insurance policy as scheduled above, or failure to collect for such loss after every reasonable effort for collection, a claim for such loss shall be filed with Insurers heron and such loss or damage shall be a claim hereunder if covered by the terms and conditions of Section 5.

It is further understood and agreed that where Insurers heron advance the payment in respect of any claim to which the insurers subscribing to the contractors / suppliers policy as scheduled above have failed to respond, the amount so advanced shall be refunded to the extent of the payment(s) received from the insurers of the contractors / suppliers insurance policy in the event of payment subsequently being made by the insurers subscribing to the contractors / suppliers policy as scheduled above.

For the avoidance of doubt there is no Difference in Deductible and Difference in Limits coverage in place under Section 5 in comparison to the contractors and/or suppliers insurance policy as scheduled above.

4 EXCLUSIONS

The cover provided by this Section is subject to the following exclusions:

- 4.1. INSTITUTE RADIOACTIVE CONTAMINATION CHEMICAL BIOLOGICAL BIO-CHEMICAL AND ELECTRO MAGNETIC EXCLUSION CLAUSE CL.370 dated 10/11/03.
- 4.2. In respect of unpacked/unpainted steelwork and all non-containerized cargo on deck the cover provided by this Section excludes rust, oxidation and discoloration, unless caused by a peril recoverable under INSTITUTE CARGO CLAUSES (C) CL. 254 dated 1/1/82 but in respect of reinforced bars the cover provided by this Section additionally excludes twisting and bending, unless caused by a peril recoverable under the said INSTITUTE CARGO CLAUSES (C).
- 4.3. The cover provided by this Section excludes electrical and/or mechanical derangement unless caused by a peril otherwise insured under this Section.
- 4.4. All exclusions applying to this Section relating to the insolvency or financial default of the owners, managers, charterers or operators of the vessel are deleted and replaced by the following provision:
 In no case shall this Section cover loss, damage or expense caused by insolvency or financial default of the owners, managers, charterers or operators of the vessel where at the time of loading the subject matter insured under this Section on board the vessel the Insured is aware or in the ordinary course of business should be aware that such insolvency or financial default could prevent the normal prosecution of the voyage.
 This exclusion shall not apply where the insurance under this Section has been assigned to the party claiming hereunder who has bought or agreed to buy the subject matter insured under this Section in good faith under a binding contract.

- 4.5. All costs rendered necessary by defects of material workmanship design plan or specification and should damage occur to any portion of the insured property containing any of the said defects the cost of replacement or rectification which is hereby excluded is that cost which would have been incurred if replacement or rectification of the insured property had been put in hand immediately prior to the said damage.

For the purpose of this policy and not merely this exclusion it is understood and agreed that any portion of the Insured Property shall not be regarded as damaged solely by virtue of the existence of any defect of material workmanship design plan or specification.

MEMORANDA APPLYING TO SECTION 5

The following Memoranda apply to the cover provided under Sections 5:

1 INSURED'S RETAINED LIABILITY

The insured shall bear at its own risk under this Section the applicable amount stated in the Policy Sheet in respect of each and every occurrence in respect of each whole shipment in respect of the cover provided under this Section.

The insured's retained liability shall not apply to losses recoverable under Institute Cargo Clauses (C) CL 254 dated January 1, 1982, nor War/SRCC losses, nor claims under the Debris Removal Clause, nor claims for General Average Salvage and Sue and Labor Charges.

2 ATTACHMENT AND TERMINATION OF RISK

Notwithstanding the limitations of the "Duration" Clauses in the Institute Cargo and Institute Strikes Clauses, the cover provided by this Section attaches from the time the property is being unloaded at key site to be agreed until the property is finally delivered to the site.

3 PARTIAL LOSS

In all cases of damage caused by perils insured against under this Section, the loss under this Section shall, as far as is practicable, be ascertained by a separation and a sale or appraisalment of the damaged portion only of the contents of the packages so damaged and not otherwise.

4 RETURNED OR REFUSED SHIPMENTS

Subject to the insuring conditions above this Section shall cover goods refused and/or returned by the consignees or which remain at the risk of the insured beyond the normal course of transit until disposed of by the insured by return to the port of shipment or otherwise.

5 CONTROL OF DAMAGED MERCHADISE

In case of damage caused by a peril insured under this Section, the insured, its agents or consignees shall have the sole right to refuse acceptance of the damaged property and shall have the right to payment of the insured value of that consignment or the affected part thereof. Such property shall then be destroyed or alternatively dispatched, at Insurers' risk and expense to the supplier's, manufacturer's or insured's (including agents or associated companies) facility, as necessary for survey and testing as to suitability for sale. The insured's decision as to suitability to be accepted by insurers whose representative shall be present at the survey, all expenses involved being for insurers' account and any salvage recoverable by the insured shall be applied against the total loss.

6 IMPAIRMENT OF RECOVERY AND RELEASED VALUE CONTRACTS OF CARRIAGE

6.1 In case of any agreement, act or omission of the insured, prior to or subsequent to loss under this Section, whereby any right of recovery against any carrier or bailee is released, impaired or lost, which would on acceptance of abandonment or payment of loss by Insurers have inured to its benefit, Insurers shall pay for the loss only to the extent their right of recovery was not released, impaired or lost.

6.2 Notwithstanding the preceding paragraph, the Insured may accept from carriers bills of lading, receipts or contracts of transportation containing a release or limitation of liability as to the value of the goods, without prejudice to coverage by this policy.

7 DEBRIS REMOVAL

The cover provided by this Section is extended to include, in addition to any other amount recoverable under this Section, extra expenses reasonably incurred by the Insured for the removal and disposal of debris of the subject matter insured under this Section, or part thereof, by reason of damage thereto caused by a risk insured under this Section, but excluding absolutely:

7.1 Any expenses incurred in consequence of, or to prevent or mitigate pollution or contamination, or any threat or liability thereof;

7.2 The cost of removal of cargo from any vessel or craft.

Insurers shall not be liable under this Memorandum for more than an additional percentage of the insured value of the shipment as mentioned in the Policy Sheet.

8 EXTRA EXPENSES

It is understood and agreed that where by reason of peril insured against under this Section extra expenses are incurred to destroy or otherwise dispose of the damaged goods, or where extra expenses are incurred to discharge from the vessel and/or craft and/or conveyance or to forward property to original or substitute final destination such expenses will be recoverable in full in addition to the damage to the subject matter insured under this Section, provided that Insurers shall not be liable under this Memorandum for more than the percentage of the insured value of the goods insured as mentioned in the Policy Sheet, subject always to the limits of indemnity provided elsewhere herein.

9 REPLACEMENT (NEW MACHINERY)

In case of loss or damage to any part of a machine or other article, consisting when complete for sale or use of several parts, the insurers (if liable therefor under the terms of this Section) shall only be liable for the proportion of the insured value applicable to the part or parts, lost or damaged or, at the insured's option, for the cost and expense of replacing, duplicating, assembling and repairing the part or parts lost or damaged (including forwarding charges via vessel, or with approval of the insurers via air) and labor and installation charges necessary to restore the damaged machine or article to its condition at time of shipment.

Provided always that in no case the liability of insurers in respect of any machine or article shall exceed the insured value of the complete machine or article.

10 ERRORS AND OMISSIONS

This Section shall not be vitiated by an unintentional error, omission or oversight in making declarations, provided the same be communicated to the Insurers as soon as known to the insured's risk manager (or equivalent responsible person) and premium paid, if required.

11 ACCUMULATION

Should there be an accumulation of interests beyond the limits of indemnity expressed in the Policy Sheet in respect of this Section by reason of any interruption of the transit and/or an occurrence beyond the control of the Insured and/or by reason of any casualty and/or at a transshipping point and/or on a connecting vessel or conveyance the Insurers agree that such excess interest is covered under this Section, subject to the insurers' liability under this Memorandum being limited to a maximum percentage as mentioned in the Policy Sheet in respect of this Section.

12 CIVIL AUTHORITY

It is understood and agreed that the subject matter insured under this Section is also covered against the risk of damage or destruction by civil authority during a conflagration or for the purpose of retarding the same; provided that neither such conflagration nor such damage or destruction is caused or contributed to by War perils elsewhere excluded in this policy.

13 GENERAL AVERAGE

This cover provided by this Section includes general average and salvage charges adjusted or determined according to the contract of affreightment and/or the governing law and practice (or if there is no contract of affreightment according to Foreign Statement or to York-Antwerp Rules) such general average and salvage charges being incurred in order to avoid or in connection with the avoidance of loss from any cause except those specifically excluded from the cover provided under this Section.

For the purpose of claims for general average contributions and salvage charges recoverable under this Memorandum the subject matter insured under this Section shall be deemed to be insured for its full contributory value.

General average deposits shall be payable on production of general average deposit receipts.

14 SHORTAGE FROM CONTAINERS

In respect of shipments in containers, provided documentary evidence is produced to substantiate the quantity loaded into a container, the fact that the container's seal is intact at unloading point shall not invalidate claims under this Section for theft, pilferage, shortage and non-delivery.

15 SHIPMENTS

Shipments are covered under this Section including against loss by jettison whether containerized or otherwise and whether on deck or under deck irrespective of Bill of Lading instructions.

16 DELIBERATE DAMAGE – POLLUTION HAZARD

This Section is extended to include loss of or damage to the subject matter insured under this Section directly caused by governmental authorities acting for the public welfare to prevent or mitigate a pollution hazard or threat thereof provided a recoverable claim would have resulted under this Section (subject to all of its terms, conditions and warranties) had the subject matter insured under this Section sustained physical loss or damage as a direct result of the accident or occurrence which gave rise to the threatened pollution hazard.

The cover provided by this Memorandum shall not increase the limit of indemnity provided for in the Policy Sheet in respect of this Section.

SECTION 6 CONSEQUENTIAL LOSS / DELAY IN START-UP

1 INSURING CONDITIONS

This Section 6 shall indemnify the principal insured as defined in the Policy Sheet in respect of loss of revenue (ascertained in the manner hereinafter provided in this Section 6 incurred during the indemnity period which results from interruption of or interference with the business of the insured which results from loss of or damage to or delay in the delivery of property consisting of or being part of the subject matter insured described above in Section 5, such loss, damage or delay being caused by:

- 1.1 A risk covered under Section 5;
- 1.2 Loss of, mechanical breakdown of, or damage to the hull, machinery and/or equipment of the vessel or aircraft on which any of the property is being carried or is intended to be carried which would be covered either:
 - 1.2.1 Under an insurance effected subject to the new Marine Policy Form with the Institute Voyage Clauses - Hulls CL. 285 dated 1/10/83, and/or the Institute War and Strikes Clauses Hulls - Voyage CL.295 dated 1/10/83 attached thereto; or
 - 1.2.2 Under an Aircraft All Risks Policy including War, Hi-jacking and Allied Perils;
- 1.2 Loss of, mechanical breakdown of, or damage to any other conveyance on which any of the property is being carried or is intended to be carried from any fortuitous cause;
- 1.4 The vessel, aircraft or other conveyance on which any of the property is carried or is intended to be carried being involved in a General Average Salvage or life-saving operation.

It is understood that if physical damage has occurred which is covered under Section 5, but in respect of which the loss is not paid under Section 5 of this policy due solely to the action of any Insured's Retained Liability, the Insured will not be denied right of recovery under this Section 6.

2 DURATION

The protection afforded by Paragraph 1.1 above shall operate from the time being unloaded at key site to be agreed until completion of safe unloading at the construction site.

3 INSURED'S RETAINED LIABILITY

The applicable insured's retained liability set forth in the Policy Sheet shall apply in respect of Section 6.

4 MEASURE OF INDEMNITY

The sum payable as indemnity under this Section 6 shall be:

- 4.1 in respect of loss of revenue:

the amount by which the revenue earned by the business of the insured during the indemnity period shall in consequence of one or more of the occurrences listed in Paragraphs 1.1, 1.2, 1.3. or 1.4. above fall short of the revenue which would have been earned by the business of the insured during such period had such occurrence(s) not occurred less any sum saved during the indemnity period in respect of such charges and expenses of the commercial operations of the business of the insured as may cease or be reduced in consequence of such occurrence(s);
- 4.2 in respect of increase in cost of working:

additional expenses including ordinary payroll over and above normal operating expenses necessarily incurred by the insured during the indemnity period in achieving capacity levels as required by contract with an electric utility at the time of the loss or in reducing loss otherwise payable under this Section 6. However, in no event shall the Insurers be liable for an amount greater than that for which they would have been liable had the Insured been unable to achieve such capacity levels.

Further in determining the indemnity payable under this Section 6 due consideration shall be given to the experience of the business of the insured before the occurrence(s) listed in Paragraphs 1.1, 1.2, 1.3. and 1.4. above and the probable experience thereafter based on the current financial model produced by the insured.

5 CLAIMS

- 5.1 In the case of a claim under this Section 6 the insured shall satisfy the Insurers as regards the extent of the anticipated production of electricity and revenue by all reasonable evidence, producing inter alia communications and/or guarantees of the suppliers or manufacturers as to the property's production capacity. Further the Insured shall produce and furnish to the Insurers such books of account and other business books, vouchers, invoices, balance sheets and other documents, proofs, information, explanation and other evidence as may reasonably be requested by the Insurers for the purpose of investigating or verifying the claim.
- 5.2 If the property mentioned under Paragraph 1 of this Section 6 is damaged or appears to be damaged on arrival it is a condition of this policy that the insurers of such property shall be advised immediately; whether they are the insurers of the property or not, the Insurers of this policy may at their own expense, upon receipt of such advice, take any action they consider necessary to minimize the loss under this Section 6.
- 5.3 If the scheduled "start-up" date of projects is delayed or postponed by a cause not covered under this Section 6 of this policy then the new "start-up" date shall be the basis of any claim under this Section 6.

6 PROFESSIONAL ACCOUNTANTS FEES AND CLAIMS PREPARATION COSTS

This Section 6 shall indemnify the insured in respect of professional accountants fees and related costs necessarily incurred in the making of a claim under this Section 6 and in respect of the insured's own costs reasonably incurred in producing and certifying any particulars or details required by the insurers or to substantiate the amount of any claim under this Section 6. Insurers shall indemnify the insured to a maximum amount as mentioned in the Policy Sheet.

7 SPECIAL CONDITIONS

It is a condition of this Section 6 of this policy that:

- 7.1 The subject matter insured under Section 5 is insured against Marine and War, Strikes and the like risks on the conditions on which the interest is customarily insured;
- 7.2 The oversea vessel(s) comply/ies with the provisions of the Institute Classification Clause CL.354 dated 1/8/97;
- 7.3. Shipping Schedule Clause: All major items are shipped forward on or before their due shipping dates.

In the event of any such shipping date being delayed or deferred by more than 30 days, the insured shall advise the insurers thereof promptly and the Insurers reserve the right to charge additional premiums as may be agreed.

8 DEFINITIONS

- 8.1 Indemnity Period
The indemnity period begins on the date upon which, but for the happening of the occurrence(s) listed in Paragraphs 1.1, 1.2, 1.3. and 1.4. above, the property (or part thereof plus other facilities as applicable) would have been put into use or operation and ending not later than the marine cargo maximum indemnity period thereafter during which period the production reasonably expected to be achieved by the Operation is affected in consequence of such occurrence(s).
- 8.2 Marine Cargo Maximum Indemnity Period
12 months

9 MINIMIZING LOSSES

It is the duty of the Insured and its servants and agents in respect of loss recoverable under this Section 6:

- 9.1. To take such measures as may be reasonable for the purpose of averting or minimizing such loss, and
- 9.2. To ensure that all rights against carriers, bailees or other third parties are properly preserved and exercised and the insurers will, in addition to any loss recoverable under this Section 6, reimburse the insured for any charges properly and reasonably incurred in pursuance of these duties.

10 WAIVER

Measures taken by the insured or the Insurers for saving, protecting or recovering the subject matter insured shall not be considered as a waiver or acceptance of abandonment or otherwise prejudice the rights of either party under this Section 6.

11 REASONABLE DISPATCH

It is a condition of this Section 6 that the insured shall act with reasonable dispatch in all circumstances within its control.

12 ADJUSTMENT AND SETTLEMENT OF CLAIMS

Claims under this Section 6 shall be adjusted and settled in Euros.

13 LIQUIDATED DAMAGES

If any contract in respect of the Construction contains a liquidated damages clause providing for payment to the Insured or to others which payments inure to the benefit of the Insured for a delay in completion of the Construction caused by loss or damage insured against by this Section any portion of such liquidated damages inuring to the benefit of the Insured shall subsequently reduce the amount of the insurers' liability under this Section.

SECTION 7 THIRD PARTY LIABILITY

1 INSURING CONDITIONS

The insurers will, subject to the Exceptions and Conditions hereinafter stated, indemnify the Insured under this Section against all sums which the insured shall be legally liable for as compensation or damages (including claimants costs and expenses) arising out of the Construction of the insured and arising out of:

- 1.1 Death of or bodily injury to or disease contracted or illness sustained by any person;
- 1.2 Damage to tangible property;

happening within the geographical limits during the policy period in connection with the:

- 1.3 Construction (all insured)

2 DEFENCE COSTS

The insurers will pay all costs, fees and expenses incurred by the insured with the insurers' prior consent:

- 2.1 In the investigation, defense or settlement of;
- 2.2 As a result of representation at any inquest, inquiry or other proceedings in respect of matters which have a direct relevance to;

any event which forms or could form the subject of indemnity by this Section.

3 LIMIT OF INDEMNITY

The insurers' liability to pay damages (including claimants costs and expenses) shall not exceed the applicable limit of indemnity stated in the Policy Sheet in respect of any one event, but in respect of pollution the limit of indemnity represents the insurers' total liability in respect of all events.

Defense cost will be payable in addition to the limit of indemnity unless this policy is endorsed to the contrary.

4 EXCEPTIONS

The indemnity granted by this Section shall not apply to liability:

- 4.1 for death of or bodily injury to or illness or disease contracted by any person arising out of and in the course of his employment by the Insured under a contract of service or apprenticeship.

For the purpose of this exception:

- 4.1.1 Labor masters and persons supplied to them;
- 4.1.2 Persons employed by labor only sub-contractors;
- 4.1.3 Self-employed persons;
- 4.1.4 Drivers and/or operators of plant hired to the insured;
- 4.1.5 Students gaining work experience;
- 4.1.6 any other persons hired or borrowed by the insured

working for the insured in connection with the business of the insured shall be deemed to be persons employed by the insured under a contract of service or apprenticeship;

- 4.2 For any obligation for which the Insured and any company as its insurer may be held liable under any workmen's compensation, unemployment compensation or disability benefits law;
- 4.3 For claims arising out of occupational illness or disease (including subsequent disablement or death) sustained by any employee of the insured which arises out of such person's employment;
- 4.4 Arising out of the ownership, possession or use of any motor vehicle or trailer by or on behalf of the insured other than liability:
 - 4.4.1 Caused by the use of any tool or plant forming part of or attached to or used in connection with any motor vehicle or trailer;

- 4.4.2 Arising beyond the limits of any carriageway or thoroughfare and caused by the loading or unloading of any motor vehicle or trailer;
- 4.4.3 For any damage to any bridge, weighbridge, road or anything beneath caused by the weight of any motor vehicle or trailer or the load thereon;
- 4.4.4 Arising out of any motor vehicle or trailer temporarily in the insured's custody or control for the purpose of parking;
- 4.4.5 Arising out of any motor vehicle beyond the limits of Dutch compulsory motor vehicle insurance act (WAM). This insurance shall apply as excess of or, respectively difference in conditions with what must thus be insured, or is insured, should this exceed the extent of the compulsory insurance.
- 4.4.6 For loss or damage caused by or inflicted with motor vehicles of which the Insured held liable for compensation is not the owner or which motor vehicle they do not have at their disposal on the basis of hire-purchase and/or lease, or of which motor vehicle they are not a holder who is required to be insured within the meaning of the Act on Compulsory Liability Insurance for Motor Vehicles (WAM) or an analogous foreign act;

Provided always that no indemnity is granted under this Section against liability compulsorily insurable by legislation or for which the government or other authority has accepted responsibility;
- 4.5. Arising out of the ownership, possession, control or use by or on behalf of the Insured of any aircraft, hovercraft or water-borne craft or vessel other than work on safety boats not exceeding 40 feet in length;
- 4.6. Arising out of technical or professional advice furnished by the insured for a fee only;
- 4.7. Arising out of the deliberate, conscious or intentional disregard by the insured's technical or administrative management of the need to take all reasonable steps to prevent injury or damage;
- 4.8. For awards or damages of a punitive or exemplary nature whether in the form of fines, penalties, multiplication of compensation awards or damages or aggravated damages or in any form whatsoever;
- 4.9. Arising out of or in connection with any product;
- 4.10. Arising out of pollution or contamination of buildings or other structures or of water or land or the atmosphere unless the pollution or contamination is caused by a sudden identifiable unintended and unexpected incident which takes place in its entirety at a specific moment in time and place during the policy period.

Provided that all pollution or contamination which arises out of one incident shall be considered by the Insurers for the purposes of this Policy to have occurred at the time such incident takes place;
- 4.11. Arising out of the failure to supply or fluctuation in the supply of electricity;
- 4.12. For damage to property owned, leased or hired by or under hire purchase or on loan to the Insured or otherwise in the Insured's care, custody or control other than:
 - 4.12.1 Premises (or the contents thereof) occupied by the Insured for work therein;
 - 4.12.2 Clothing and personal effects belonging to employees and visitors of the Insured;
 - 4.12.3 Premises tenanted by the principal insured to the extent that the principal insured would be held liable in the absence of any specific agreement;
- 4.13. For the insured's retained liability as expressed in the Policy Sheet;
- 4.14. For any amount in respect of liquidated damages or penalties payable by the insured under the Construction or Operation;
- 4.15. Assumed under contract or agreement except to the extent that such liability would have attached in the absence of such contract or agreement;

- 4.16. For injury or damage caused by asbestos including liability resulting from asbestosis;
- 4.17. Arising out of any wrongful act, error or omission committed or alleged to have been committed by any director or officer of the principal insured in their respective capacity as such. This exception does not apply to injury or damage consequent upon such acts, errors or omission;
- 4.18. Arising out of, directly or indirectly resulting from or in consequence of, or in any way involving any actual or alleged acts of medical malpractice, other than liability arising out of first aid;
- 4.19. For injury and/or damage resulting from the failure of the insured's products or work completed by or for the Insured to perform the function or serve the purpose intended by the insured;
- 4.20. For financial loss which is not consequent upon injury and/or damage

DEFINITIONS APPLYING TO SECTION 7

1 **DAMAGE**

Wherever the term “Damage” appears in this Section it shall mean accidental loss or destruction of or damage.

2 **EVENT**

Wherever the term “Event” appears in this Section it shall mean one occurrence or a series of occurrences consequent upon or attributable to one source or original cause for which indemnity is provided by this policy.

3 **RETAINED LIABILITY**

Wherever the term “Retained Liability” appears in this Section it shall mean the total amount payable by the insured in respect of all indemnifiable damages costs and expenses arising out of any event before the insurers shall be liable to make any payment.

4 **THE INSURED**

For the purposes of this Section “the Insured” shall include:

4.1 Any director or partner of the insured;

4.2 Any person under a contract of service or apprenticeship with the insured or additional insured;

4.3 Any person working for the insured or for the purpose of gaining work experience in his respective capacity as such.

5 **PRODUCT**

Wherever the term “Product” appears in this Section it shall mean any property after it has left the custody or control of the insured which has been designed, specified, formulated, manufactured, constructed, installed, sold, supplied, distributed, treated, serviced, altered or repaired by or on behalf of the Insured, but shall not include food or drink supplied by or on behalf of the Insured primarily to the insured’s employees as a staff benefit.

MEMORANDA APPLYING TO SECTION 7

The following Memoranda apply to the cover provided under Sections 7:

1 CROSS LIABILITIES

- 1.1 Each of the parties comprising the Insured shall for the purpose of this Section be considered a separate entity the words “The Insured” applying to each as if they were separately and individually insured provided that the total liability of the insurers under this Section to the insured collectively shall not (unless this Section specifically permits otherwise) exceed the limit of indemnity stated to be insured thereby.
- 1.2 The insurers hereby agree to waive all rights of subrogation or action which they may have or acquire against any of the parties comprising “The Insured” arising out of any event in respect of which any claim is admitted hereunder.
- 1.3 However the above is not applicable regarding consequential losses.

2 DISCHARGE OF LIABILITIES

The insurers may at any time pay to the insured in connection with any claim or series of claims under this Section to which a limit of indemnity applies the amount of such limit (after deduction of any sums already paid) or any lesser amount for which such claims can be settled and upon such payment being made the Insurers shall relinquish the conduct and control of and be under no further liability in connection with such claims except for the payment of defense costs incurred prior to the date of such payment (unless the limit of indemnity is stated to be inclusive of defense costs).

Provided that if the Insurers exercise the above option and the amount required to dispose of any claim or series of claims exceeds the Limit of Indemnity and such excess amount is insured either in whole or in part with defense costs payable in addition to the limit of indemnity under this Section then the Insurers will also contribute their proportion of subsequent defense costs incurred with their prior consent.

3 ELECTRO MAGNETIC FIELDS CLAUSE (CLAIMS MADE BASIS)

Insuring Clause applicable to Electro Magnetic Fields Clause

The insurers will indemnify the insured under this Section against all sums which the insured shall become legally liable to pay as compensation or damages (including claimants’ costs and expenses) in respect of claims first made against the Insured during the policy period arising from Electro Magnetic Fields resulting in:

- 3.1 Death of or injury to or disease contracted or illness sustained by any person;
- 3.2 Damage to tangible property.

The insurers will indemnify the insured under this Section in respect of all legal and other costs fees and expenses reasonably incurred with insurers’ written consent relating to any claim which is or may be the subject of indemnity under this Electro Magnetic Fields Clause.

Definition applicable to Electro Magnetic Fields

For the purposes of this Electro Magnetic Fields Clause “Electro Magnetic Field” shall mean electric and/or magnetic fields and/or radiation produced by or associated with the generation, transmission, emission, distribution or use of electricity or radio waves or microwaves at or from any premises or plant or equipment of the insured or any product of the insured.

Limit of indemnity applicable to Electro Magnetic Fields

The liability of Insurers for all compensation or damages (including claimants’ costs fees and expenses) under this Electro Magnetic Fields Clause:

- 3.3 Shall not in the aggregate during the policy period exceed the applicable limit of indemnity specified in the Policy Sheet;

- 3.4 In respect of any one claim or series of claims resulting from one originating cause shall be deemed to be one event for the purposes of this Electro Magnetic Fields Clause.

Defense costs payable under this Electro Magnetic Fields Clause are included in the applicable limit of indemnity specified in the Policy Sheet.

Exceptions applicable to Electro Magnetic Fields

The insurers shall not be liable under this Electro Magnetic Fields Clause in respect of:

- 3.5 Any claim for liability arising from electromagnetic fields which occurred prior to the retroactive date specified in the Policy Sheet;
- 3.6 Diminution in value of real property not consequent upon Damage;
- 3.7 Death of or bodily injury to or illness or disease contracted by any person arising out of and in the course of his employment by the Insured under a contract of service or apprenticeship.

For the purpose of this exception:

- 3.7.1 Labor masters and persons supplied to them;
- 3.7.2 Persons employed by labor only sub-contractors;
- 3.7.3 Self-employed persons;
- 3.7.4 Drivers and/or operators of plant hired to the insured;
- 3.7.5 Students gaining work experience;
- 3.7.6 Any other persons hired or borrowed by the insured

working for the Insured in connection with the business of the insured shall be deemed to be persons employed by the Insured under a contract of service or apprenticeship;

- 3.8 Any claim arising out of any circumstance:
- 3.8.1 Notified by the insured and accepted as a claim under any insurance which was in force prior to the inception of this policy;
- 3.8.2 Known or which in the reasonable opinion of Insurers ought to have been known to the insured at the inception of this policy;

unless such circumstance has been declared to and accepted by insurers in writing.

GENERAL CONDITIONS APPLYING TO ALL SECTIONS

This contract shall meet the requirement of contingency as referred to in Section 925 of Book 7 of the Dutch Civil Code, if and in so far as the loss or damage suffered by the insured or a third party in respect whereof indemnity is claimed from the insurer respectively the insured is the result of an occurrence regarding which it was uncertain to the parties at the time the insurance contract was concluded that loss or damage on the part of the insured had arisen there from or would arise there from under normal circumstances.

The following conditions apply in respect of all Sections:

1 INSURED'S RETAINED LIABILITY

If any Section is subject to more than one insured's retained liability expressed in a monetary amount and more than one of such insured's retained liabilities apply to a single occurrence under such Section, such insured's retained liabilities shall be applied separately but the cumulative deductions so calculated shall not exceed the largest insured's retained liability applicable.

2 CURRENCY

The premium payment and any loss settlement are to be made in the currency of the Euro. In the event of expenses and costs involving a currency other than the above currency the exchange rate to be used for the currency conversion involved will be the closing average of the buying and selling rates of the currency was quoted by the Financial Times as of the date such costs shall be paid by the insurers.

3 UNITY OF POLICY

Any word or expression to which a specific meaning has been attached in any part of this policy or of the P to this policy shall bear such meaning wherever it may appear.

4 PRECAUTIONS

The insured shall take and cause to be taken all reasonable precautions for the safety of persons and property and to prevent injury or loss or damage. In the event of an occurrence giving rise to or which may give rise to a claim under this policy the insured shall take such immediate action as is necessary to minimize any loss and prevent repetition.

5 CHANGE IN CIRCUMSTANCES

If any change shall occur materially varying any of the circumstances disclosed to the insurers the insured shall as soon as reasonably practicable give notice of such change with full particulars thereof and the Insurers shall have the right to vary the terms of this policy subject to agreement with the insured. It is agreed that disclosure to inspectors or surveyors employed by the insurers is considered notice to the insurers.

6 CLAIMS PROCEDURES

Upon the happening of an event likely to give rise to a loss payable under this policy, notice in writing with full particulars shall be given to the insurers or their agents as soon as possible after such information shall come to the knowledge of the insured's risk manager (or equivalent responsible person).

Every writ, claim, summons or process and all documents relating thereto shall be forwarded to the insurers immediately upon receipt.

The insured shall in respect of such events take all practical steps to preserve damaged property for inspection by the insurers or their authorized representative and to prevent or minimize further loss or damage.

No admission, offer, promise or payment shall be made or given by or on behalf of the Insured without the prior consent of the Insurers who shall be entitled to take over and conduct in the name of the Insured the defense or settlement of any claim or to prosecute in the name of the Insured to their own benefit any claim for indemnity or damages or otherwise and shall have full discretion in the conduct of any proceedings and in the settlement of any claim and the Insured shall give all such information and assistance as the Insurers may reasonably require.

7 ARBITRATION

If any difference shall arise as to the liability of the insurers under this policy or to the amount to be paid under this policy such difference shall be submitted to an arbitrator or to an arbitration committee appointed in accordance with the Rules of Arbitration of the Netherlands. The arbitration proceedings shall be held in the Netherlands. Where any difference is by this condition to be referred to arbitration the making of an award shall be a condition precedent to any right of motion against the insurers.

8 FRAUDULENT CLAIMS

If an insured party shall make any claim knowing the same to be false or fraudulent, as regards amount or otherwise, this contract shall become void and all claim hereunder shall be forfeited but only in relation to that insured party's interest.

9 CANCELLATION

Any or all of the Sections may be cancelled in accordance with the terms of the Lenders Endorsement attached.

In the event of cancellation as provided above, the premium hereon shall be adjusted on the basis of the insurers receiving or retaining the pro rata premium.

Notice provided under this General Condition shall be sent by registered letter providing a receipt to the sender verifying delivery or as amended by the Lenders Endorsement attached to the policy.

10 DOWNGRADE SECURITY CANCELLATION

In the event of an explicit downgrading of the security rating of any individual subscribing Insurer by Standard & Poor's Rating Group (S&P) and/or by A.M. Best Company (Bests) to a rating inferior to A-, then, at the sole option of the insured, the insured may elect to terminate the participation of that subscribing insurer by giving notice in writing by registered letter to Holland Verzekeringsmakelaars B.V. The effective date of such termination shall be determined at the sole discretion of the Insured provided the date so determined shall not be earlier than the date the security rating was reclassified.

Should an insurer's participation in this contract be terminated in accordance with the above provisions such Insurer shall allow a return premium to the Insured, calculated on a pro-rata temporis basis, subject to no loss hereon.

The rights and obligations of all parties to the contract shall remain in full force until the effective date of such termination.

11 CONTRIBUTING INSURANCE

If at the time of any occurrence there is any other insurance effected by or on behalf of the insured covering any loss insured by this policy the insurers' liability hereunder shall be primary to such other insurance.

12 SALVAGE AND RECOVERIES

Any sums recovered through subrogation proceedings with respect to any loss under this policy shall follow the principle that any interests (including the Insured) that shall have paid an amount in excess of the limits of this policy shall first be reimbursed up to the amount paid by them. The insurers hereon are then to be reimbursed out of any balance then remaining up to the amount paid hereunder. Lastly the interests (including the Insured) of whom this coverage is in excess are entitled to claim the residue if any.

Expenses necessary to the recovery of any such amounts shall be apportioned between the interests (including those of the insured) concerned in the ratio of their respective recoveries as finally settled.

13 SUBROGATION

Except as otherwise provided in this policy the Insurers may require from the insured an assignment of all right of recovery against any party other than the Insured for loss or damage to the extent that payment therefor is made by the insurers. However any release from liability or waiver of subrogation entered into by the insured prior to loss hereunder shall not affect the validity of this policy or the right of the insured to recover hereunder. If the insured prior to any loss or damage has entered into any agreement whereby any

third party shall be held harmless for any loss or damage the insurers shall have no rights of recovery against such third party to the extent of such hold harmless agreement.

Further in the event of a claim arising under this policy the insurers agree to waive any rights, remedies or relief to which they may become entitled by subrogation against:

- 13.1 any company standing in the relation of parent to subsidiary or subsidiary to parent to the insured;
- 13.2 any company which is a subsidiary of a parent company of which the insured are themselves a subsidiary;
- 13.3 any insured or additional insured including any individual corporation or other entity comprising the insured or additional insured or any of their subsidiary or affiliated companies under this policy or in accordance with any Lenders Endorsement attached to this policy;
- 13.4 any contractor or subcontractor if such contractor or subcontractor could charge back to the insured (or one of its subsidiary or affiliated companies) the amount of any loss (or any part thereof) recovered by the insurers.

14 PREMIUM ADJUSTMENT

The premiums declared for new Constructions accepted by the insurers hereon are to be paid at the inception of the risk unless agreed as part of the overall adjustment.

The premium for this policy has been calculated on estimates given by the insured to the insurers. The insured shall keep an accurate record containing all relevant particulars of the interests insured under this policy. The insurers agree that the insured will submit schedules showing the completion dates of construction and the operational start dates of each turbine and substation. The insurers shall charge pro rata such premiums due on operational covers at the expiry of each policy period.

15 SUE AND LABOUR

This General Condition does not apply in respect of Section 4:

In case of imminent or actual loss or damage it shall be lawful and necessary for the Insured their factors, servants or assigns to sue, labor and travel for, in and about the defense, safeguard and recovery of the property insured under this policy or any part of such property to the extent necessary to reduce the loss without prejudice to this policy, such expense to be borne by the Insured and the Insurers, to the extent of their respective interests. The acts of the Insured or the Insurers in recovering, saving and preserving the property insured, in case of loss or damage shall not be considered a waiver or acceptance or abandonment.

16 ERRORS AND OMISSIONS

This policy shall not be prejudiced by any inadvertent or unintentional error, omission or oversight by the insured in making reports or declarations that might be required under this policy, provided they are communicated to the insurers as soon as known or discovered by the insured's risk manager (or equivalent responsible person) and agreement made to pay any additional premium that may reasonably be required by the insurers.

17 50/50 MARINE/NON MARINE LOSS SHARING

This General Condition does not apply in respect of Section 7:

In the event of physical loss of or damage to property insured under this policy indemnifiable under the terms of this policy being discovered after the risk has terminated under a marine policy and after proper investigation it is not possible to ascertain whether the cause of such physical loss or damage happened prior to termination of the marine venture or subsequently it is understood and agreed that the insurers hereon shall contribute 50 percent of the properly adjusted claim provided the Marine Cargo insurers also agree to contribute 50 percent. Such contributions to be without prejudice to subsequent final apportionment of the claim as may be agreed between the insurers hereon and the Marine Cargo insurers.

In the event of the insured's retained liability under this Policy being different from the excess under the Marine Policy in settling claims as described above each insurer shall deduct 50 % of its appropriate insured's retained liability or excess from 50 % share of the adjusted claim.

Subject otherwise to the terms, conditions and limitations of this policy.

18 SEVERABILITY OF INTEREST

If the insured comprises more than one party, each such party shall, for the purpose of this policy, be a separate and distinct entity and cover hereunder shall apply in the same manner and to the same extent as if individual insurances had been issued to each such party.

Provided that the liability of the insurers shall not in consequence exceed the limits of indemnity set forth in the Policy Sheet to this policy.

This policy shall be deemed for all purposes to be a composite insurance. Accordingly any act or omission of any one insured party shall not be attributed to any other party and shall have no effect on the insurance provided by this policy to any other insured party. Further, any act or omission of any one insured party while acting as the agent of any other insured party for the purposes of this policy shall not be attributed to any other party and shall have no effect on the insurance provided by this policy to any other insured party.

19 ADDITIONAL INSURED

It is agreed that the term insured shall not be limited to those engaged in a Construction at the inception of the cover provided under the applicable Section 1 but will automatically extend to include others engaged under contract thereafter whether or not their engagement was in contemplation of any of the insured prior to inception of Section 1.

20 MUNITIONS OF WAR

It is noted and agreed that Paragraph 1.1 of General Exclusion of this policy shall not apply to nor exclude any loss, destruction or damage, consequential loss or liability resulting from or caused by weapons of war undiscovered and/or undetected at the moment of commencement of any part of the project(s) insured under this policy so long as no state of war exists in the country where the project(s) is/are situated.

21 GOVERNING LANGUAGE

The English language version of this policy shall take precedence.

22 WARRANTY AND EXPRESS WARRANTY

It is a condition precedent upon this Insurance that no such claim shall be filed under this policy unless and until the principal insured has made every reasonable effort to collect such loss or damage under any applicable warranty and/or guarantee and/or contract including the EPC contract and maintenance and service agreement. In the event of denial of liability by the manufacturer, supplier or contractor or failure to collect for such loss after every reasonable effort for collection, a claim for such loss shall be filed with insurers hereon and such loss or damage shall be a claim hereunder if covered by the terms and conditions of this policy.

It is further noted and agreed that where insurers hereon advance the payment in respect of any claim to which a manufacturer has failed to respond, the amount so advanced shall be refunded in full in the event of payment subsequently being made by the manufacturer.

GENERAL EXCLUSIONS TO THE POLICY

The insurers shall not, except as provided under Section 5 Memorandum paragraph 4 (Radioactive Contamination Extension) and General Condition 20 (Munitions of War), indemnify the insured in respect of:

1 WAR AND TERRORISM

Loss or any liability for damage, injury, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any of the following regardless of any other cause or event contributing concurrently or in any other sequence to the loss:

- 1.1 War, invasion, acts of foreign enemies, hostilities or warlike operations (whether war be declared or not), civil war, rebellion, revolution, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or
- 1.2 Any act of terrorism.

For the purpose of this exclusion an act of terrorism means an act including but not limited to the use of force or violence and/or the threat thereof of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organization(s) or government(s) committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public or any section of the public in fear.

This exclusion also excludes loss or any liability for damage, injury, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing suppressing or in any way relating to paragraphs 1.1 and/or 1.2 above.

If the insurers allege that by reason of this exclusion, any loss or any liability for damage injury cost or expense is not covered by this insurance the burden of proving the contrary shall be upon the insured.

In the event any portion of this exclusion is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

2 RADIOACTIVE CONTAMINATION AND EXPLOSIVE NUCLEAR ASSEMBLIES

(Approved by Lloyd's Underwriters' Non-Marine Association)

This policy does not cover:

- (a) loss or destruction of or damage to any property whatsoever or any loss or expense whatsoever resulting or arising therefrom or any consequential loss
- (b) any legal liability of whatsoever nature directly or indirectly caused by or contributed to by or arising from:
 - (i) ionizing radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel
 - (ii) the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof.

3 WILFUL ACT

Loss, damage or liability which results from a deliberate act or omission committed by or with the full knowledge of the insured's executive management which could in the view of a knowledgeable and prudent person in such a or similar executive management position have been likely to result in a loss having regard to the nature and circumstances of such act or omission.

4 SEVERAL LIABILITY LMA3333

- 4.1 (RE)INSURERS LIABILITY CLAUSE (re)insurer's liability several not joint the liability of a (re)insurer under this contract is several and not joint with other (re)insurers party to this contract. A (re)insurer is liable only for the proportion of liability it has underwritten. A (re)insurer is not jointly liable for the proportion of liability underwritten by any other (re)insurer. Nor is a (re)insurer otherwise responsible for any liability of any other (re)insurer that may underwrite this contract.

- 4.2 The proportion of liability under this contract underwritten by a (re)insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown next to its stamp. This is subject always to the provision concerning "signing" below.
- 4.3 In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is a (re)insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other (re)insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.
- 4.4 Proportion of liability
- 4.5 Unless there is "signing" (see below), the proportion of liability under this contract underwritten by each (re)insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown next to its stamp and is referred to as its "written line".
- 4.6 Where this contract permits, written lines, or certain written lines, may be adjusted ("signed"). In that case a schedule is to be appended to this contract to show the definitive proportion of liability under this contract underwritten by each (re)insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together). A definitive proportion (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of a Lloyd's syndicate taken together) is referred to as a "signed line". The signed lines shown in the schedule will prevail over the written lines unless a proven error in calculation has occurred.
- 4.7 Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

CLAUSES

1 SANCTION LEGISLATION CLAUSE

The (financial) interests of persons, companies, public authorities and other entities, whose interests the insurers and/or the broker is not permitted to insure pursuant to (inter) national sanction legislation, shall not be included in the coverage under this insurance.

2 LMA5397 COMMUNICABLE DISEASE CLAUSE

COMMUNICABLE DISEASE EXCLUSION

(For use on power generation, construction and engineering policies)

1. Notwithstanding any provision to the contrary within this insurance, this insurance does not insure any loss, damage, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 2.3. the disease, substance or agent can cause or threaten bodily injury, illness, damage to human health, human welfare or property.

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29 April 2020

3 LMA5400 PROPERTY CYBER AND DATA ENDORSEMENT

PROPERTY CYBER AND DATA ENDORSEMENT

- 1 Notwithstanding any provision to the contrary within this policy or any endorsement thereto this policy excludes any:
 - 1.1 Cyber Loss, unless subject to the provisions of paragraph 2;
 - 1.2 loss, damage, liability, claim, cost, expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any data, including any amount pertaining to the value of such data, unless subject to the provisions of paragraph 3; regardless of any other cause or event contributing concurrently or in any other sequence thereto.
- 2 Subject to all the terms, conditions, limitations and exclusions of this policy or any endorsement thereto, this policy covers physical loss or physical damage to property insured under this policy caused by any ensuing fire or explosion which directly results from a cyber incident, unless that cyber incident is caused by, contributed to by, resulting from, arising out of or in connection with a Cyber Act including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act.
- 3 Subject to all the terms, conditions, limitations and exclusions of this policy or any endorsement thereto, should data processing media owned or operated by the Insured suffer physical loss or physical damage insured by this policy, then this policy will cover the cost to repair or replace the data processing media itself plus the costs of copying the data from back-up or from originals of a previous generation. These costs will not include research and engineering nor any costs of recreating, gathering or assembling the data. If such media is not repaired, replaced or restored the basis of valuation shall be the cost of the blank data processing media. However, this policy excludes any amount pertaining to the value of such data, to the Insured or any other party, even if such data cannot be recreated, gathered or assembled.
- 4 In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.
- 5 This endorsement supersedes and, if in conflict with any other wording in the policy or any endorsement thereto having a bearing on cyber loss, data or data processing media, replaces that wording.

Definitions

- 6 Cyber Loss means any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any Cyber Act or cyber incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or cyber incident.
- 7 Cyber Act means an unauthorized, malicious or criminal act or series of related unauthorized, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any computer system.
- 8 Cyber Incident means:
 - 8.1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any computer system; or
 - 8.2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any computer system.
- 9 Computer system means:
 - 9.1 any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.
- 10 Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a computer system.
- 11 Data processing media means any property insured by this policy on which data can be stored but not the data itself.

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4 DEGRADATION OF BATTERIES CLAUSE

Each form of degradation of the batteries will be considered as “Gradual Change, Normal Wear and Normal Tear” and therefore excluded under all Sections.

5 EXISTING PROPERTY CLAUSE

The Insurers shall indemnify the insured for damage to:

1. Named insured's existing property;
2. Any other property deemed to be in the care, custody or control of the named insured including property whilst being worked upon:

on or adjacent to the construction and/or erection site provided that the damage to such property arises in connection with the Construction occurring during the policy period.

The Insurers shall not be liable under this Specific Condition for:

1. The cost of rectifying damage which existed prior to the commencement date of The Works;
2. Damage caused by fire or explosion

The indemnity provided by this Specific Condition is limited to EUR 1,000,000 any one occurrence.

6 OPERATION & MAINTENANCE CONTRACT CLAUSE

This insurance is concluded on condition that the insured has concluded an Operation & Maintenance contract with the manufacturer/supplier for the insured BESS during the term of this insurance. This contract must stipulate that the insured is entitled, without further additional payment, to:

- preventive maintenance, including periodic inspection, cleaning and adjustment of the insured item(s) to prevent malfunctions;
- modifications, including the implementation of modifications and/or adjustments, which are prescribed or recommended by the manufacturer, supplier or legislation and regulations;
- monitoring and response, periodic monitoring of the performance of the installation and a guaranteed response within 48 hours after detection of significant deviations or (damage) reporting by the insured.

The insured is obliged to follow all written recommendations of the executing O&M party, regarding preventive measures, modifications as a result of advancing technical insight, or other recommendations based on observations in situ.

In the absence or interim termination of this O&M contract, damage due to inherent defects (art. 7.951 BW) is excluded from coverage, unless the O&M party is declared bankrupt, as a result of which the insured can no longer rely on the O&M contract. In that case, the insured is obliged to immediately report the bankruptcy of the O&M party to the insurers and to conclude a replacement O&M contract with a reputable maintenance company approved by the insurers within 60 days of the bankruptcy becoming known. If the insured fails to conclude a replacement O&M contract within the set period, the coverage for inherent defects will lapse on the 61st day.

7 TESTING AND PREHANDOVER

It is understood and agreed that this Insurance includes coverage for:

1. loss or damage attributable to hot testing or operational testing for a maximum of 30 days.
2. contract works and/or supplies handed over to the Employer prior to commencement of Commercial Operational Date of each BESS separately are included in the Insurance until such commencement and also in the following extended maintenance period (defect liability period)

All other terms and conditions remain unchanged

8 END OF BUILDING PERIOD

It has been agreed that, upon Commercial Operational Date of each BESS separately, the construction period ends and the maintenance period for the concerning BESS begins.

9 INDEMNITY SECTION 2

Notwithstanding article 2 of Section 2 the measure of indemnity will be as following:

Subject to all other applicable terms, exclusions, and limitations of this insurance, compensation for the loss of anticipated revenue is limited to EUR 30 per MWh of installed capacity of the concerning BESS per day, with a maximum of 10% of the EPC contract price of the concerning BESS as agreed between the policyholder and the principal.